

Muluki Criminal Procedure Code, 2017

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Muluki Criminal Procedure Code, 2074

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Amending Acts

1. Some Nepal Acts Amending Act relating to the Muluki Code, 2075 2076.01.02
2. Some Acts Amending Act relating to Criminal Offences and Criminal Procedure, 2079 2079.03.31
3. Some Acts Amending Act against Sexual Violence, 2079 2079.03.31
4. Some Nepal Acts Amending Act relating to the Muluki Code, 2080 2080.04.12
5. Some Acts Amending Act relating to Prevention of Money Laundering and Promotion of Business Environment, 2080 2080.12.30
6. Some Nepal Acts Amending Act relating to Promotion of Good Governance and Public Service Delivery, 2081 2081.12.18

Act Number 37 of the year 2074

Preamble: Whereas, it is desirable to simplify and modernize the procedural law by amending and consolidating the prevailing laws relating to the investigation, prosecution, filing, proceedings, hearing and adjudication of criminal cases and other procedures connected therewith and the execution of judgments rendered in such cases;

Now, therefore, the Legislature-Parliament pursuant to sub-article (1) of Article 296 of the Constitution of Nepal has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called as amended by Some Nepal Acts Amending Act relating to the Muluki Code, 2075. "Muluki Criminal Procedure Code, 2074".

(2) Section 192 of this Code shall come into force from the date appointed by the Government of Nepal by a notification published in the Nepal Gazette, and the other Sections shall come into force from the 1st day of Bhadra, 2075. 2.

Definitions: Unless the subject or context otherwise requires, in this Act,- (a) "Court" means the Supreme Court, High Court or District Court and the said term also includes other courts, judicial bodies or officers authorized by law to conduct proceedings, hear and adjudicate a particular type of criminal case. (b) "Investigation Officer" means an officer designated to investigate an offence pursuant to this Act or an officer authorized by law and the said term also includes an investigation team formed to investigate a particular offence. (c) "Criminal Code" means the Muluki Criminal (Code) Act, 2074. (d) "Complaint" means the plaint to be filed in the court and the said term also includes the indictment in relation to offences under Schedule 1 or Schedule 2 and the report relating thereto in respect of other cases. (e) "Offence" means an act punishable under the Criminal Code or other Acts. (f) "Law" means the law in force for the time being. (g) "Serious

Offence" means an offence punishable with imprisonment for more than three years up to ten years. (h) "Heinous Offence" means an offence punishable with life imprisonment or imprisonment for more than ten years. (i) "Place" means a house, hut, shed, platform or tent and the said term also includes vehicles, boats, aircraft and other places or means of similar nature. (j) "Judge" means an officer of the court conducting proceedings, hearing and adjudicating cases, and the said term also includes an officer authorized to conduct proceedings, hear and adjudicate criminal cases. (k) "Police Office" means a police office authorized to investigate an offence specified in Schedule 1. (l) "Criminal Case" means a case concerning an offence under Schedule 1, Schedule 2, Schedule 3 or Schedule 4 and the said term also includes other cases except the following matters:- (1) Cases relating to legal right, status, position, family relationship or property, (2) Determination of kinship or divorce, (3) Fees, remuneration, salary, allowance or wages, (4) Partition, inheritance, donation, will, guardianship, adult, major, ancestral, power of attorney, adopted son or daughter, (5) Any right or claim under a contract, quasi-contract or unjust enrichment, (6) Right or claim relating to tort, quasi-tort or defective product, (7) Easement, (8) Compensation, or (9) Any other right or liability of a civil nature. (m) "Case" means a criminal case. (n) "Case Hearing Officer" means an officer authorized by law to conduct proceedings, hear and adjudicate cases and the said term also means, in respect of a person taken into custody, the court nearest to the place where such person has been taken into custody. (o) "Local Level" means a rural municipality or municipality. (p) "Government Attorney" means the Attorney General, Deputy Attorney General, Joint Attorney, Assistant Attorney, District Attorney or Assistant District Attorney and the said term also includes an officer designated by the Attorney General to work in the capacity of a Government Attorney.

3. Effect not to be on separate legal provision: as amended by Some Nepal Acts Amending Act relating to the Muluki Code, 2075.(1) If a provision is made in a separate Act regarding the investigation, prosecution, jurisdiction for hearing cases, hearing, execution of judgment or any other proceeding of an offence, the provision of this Code shall not affect such matter.

(2) On the subject of procedure not provided for in the separate Act referred to in subsection (1), the provisions of this Code shall apply.

(3) Without prejudice to the generality of subsection (1), in respect of the following matters, it shall be as follows:-

(a) If any officer is designated in a separate Act regarding prosecuting a case for an offence, such officer shall, and if no such officer is designated, the concerned office chief shall, without delay, submit the case file along with evidence and an indictment to the concerned Government Attorney for a decision on whether or not to prosecute, within the limitation period.

(b) After receiving the case file pursuant to clause (a), a decision shall be made on whether or not to prosecute, and if it is decided to prosecute, the received case file shall be returned without delay within the limitation period, specifying the person to be prosecuted, the charge against him/her, the punishment and the claim to be made in the indictment.

(c) After receiving the decision to prosecute pursuant to clause (b), an indictment shall be prepared accordingly, and the case shall be filed in the concerned court within the limitation period, including the detainee if detained, and a copy of the case file shall be provided to the Government Attorney.

(d) In addition to filing the indictment pursuant to clause (c), the officer or office chief referred to in clause (a) may perform the following acts:-

- (1) After obtaining the opinion of the Government Attorney, to file an indictment including a claim regarding reducing the punishment of the accused pursuant to Section 33 and in the situation under subsection (6) of the same Section, to submit a petition to the concerned court including a claim to cancel the remission of punishment,
- (2) After obtaining the opinion of the Government Attorney, to file a case including additional claims pursuant to Section 35,
- (3) After obtaining the opinion of the Government Attorney, to file a case including additional claims pursuant to Section 36,
- (4) After obtaining the opinion of the Government Attorney, to submit a petition to the court for correcting errors pursuant to Section 37,
- (5) To present witnesses in court pursuant to Section 101 through the Government Attorney,
- (6) To provide daily and travel allowances pursuant to Section 113 to the witness expert.

Chapter-2

Provisions relating to Information of Offence and Investigation

4. Complaint Application or Information of Offence to be given: (1) A person who has knowledge that an offence specified in Schedule 1 has been committed, is being committed or is about to be committed, shall, as soon as possible, give a written complaint application or oral information or information through electronic means, disclosing the evidence in his/her possession or as seen or known by him/her, to the nearest police office in the format according to Schedule 5.

(2) If the person giving the complaint application or information pursuant to subsection (1) as amended by Some Nepal Acts Amending Act relating to the Muluki Code, 2075.or the complaint application given by him/her is not in the format according to Schedule 5, the concerned police employee shall fill in all the details of the information given by him/her in the format according to Schedule 5, read it out to him/her, obtain his/her signature or thumbprint, and keep it on record.

(3) If a person gives the complaint application or information pursuant to subsection (1) by appearing in person at the concerned police office, as amended by Some Nepal Acts Amending Act relating to the Muluki Code, 2075.or sends it by post or through another person, or gives information through electronic means, such police office shall register such complaint application or information and issue a receipt to him/her in the format according to Schedule 6. If someone has given information through electronic means, acknowledgment of receipt of such information shall be given through the same means.

Added by Some Nepal Acts Amending Act relating to the Muluki Code, 2075.(3a) If the reliability of information received by post or electronic means pursuant to subsection (1) needs to be verified, the police office may summon the person giving such information and have him/her confirm it. (4) Notwithstanding anything contained in subsections (1), (2) or (3), if the police receives information or knowledge of the commission of an offence specified in Schedule 1 from any other source or itself, a report containing the details mentioned in Schedule 5 shall be prepared in relation thereto. (5) The complaint application, information made pursuant to this Section or the report pursuant to subsection (4) shall be as amended by Some Nepal Acts Amending Act relating to the Muluki Code, 2075.registered in a register book in the format according to Schedule 7 and kept on record by the police office or the office or officer authorized to investigate. (6) Regarding the complaint application or information received pursuant to subsection (1), if a separate investigation officer is designated by law, it shall be sent to such officer, and if there is no separate investigation officer, it shall be sent to the concerned district police office. (7) A person wishing to give

information regarding an offence specified in Schedule 2 shall give information in the format according to Schedule 5 to the office or officer authorized to investigate. (8) The information received pursuant to subsection (7) shall be registered by the concerned office or officer, and a receipt in the format according to Schedule 6 shall be given to the person giving such information. (9) If it is not immediately possible to register the information pursuant to subsection (7) with the concerned office or officer, such information may also be given to the nearest police office. (10) If any information is received pursuant to subsection (9), the concerned police office shall also register such information pursuant to subsection (3) and send it to the concerned office or officer for action within three days. 5.

May Complain if Complaint Application or Information not Registered: (1) If the concerned police office refuses to register a complaint application or information given pursuant to subsection (1) of Section 4, the person making the complaint application or information may lodge a complaint, along with the complaint application or information, to the concerned District Government Attorney Office or to the police office at a level higher than the police office where such complaint application or information should have been registered, stating such facts. (2) Upon receipt of the complaint pursuant to subsection (1), the concerned District Government Attorney Office or police office shall keep a record thereof and send such complaint application or information to the concerned police office for necessary action. (3) The complaint application or information received pursuant to subsection (2) shall be registered by the concerned police office pursuant to subsection (3) of Section 4 and acted upon. (4) If the office or officer mentioned in subsection (7) of Section 4 refuses to register the information pursuant to that subsection, the person giving such information may lodge a complaint, along with the information of the offence, to the concerned Chief District Officer, stating such facts. Provided that, if the Chief District Officer himself/herself is designated as the investigation officer and he/she refuses to register such information, such complaint may be lodged with the Ministry of Home Affairs. (5) Upon receipt of the complaint pursuant to subsection (4), the concerned Chief District Officer or the Ministry of Home Affairs shall decide whether to register the information or not within three days and issue a directive to the concerned office to act or cause to act accordingly. (6) After receiving the directive pursuant to subsection (5), the concerned office or officer shall take action as per the directive. 6.

To make arrangement to prevent loss or destruction of evidence and to prevent offender from escaping: (1) If any police office or police employee receives information that an offence specified in Schedule 1 has been committed, is being committed or is about to be committed, he/she shall, as soon as possible, make necessary and effective arrangements to prevent the offender from committing the offence or to prevent any evidence related to the offence from being lost or destroyed and to prevent the offender from fleeing or escaping. (2) If any evidence related to the offence is likely to be lost or destroyed or the offender is likely to flee or escape if action is not taken immediately pursuant to subsection (1), such police office or employee may, as necessary, go even into the area of another police office and take necessary action. (3) If it is necessary to go into the area of another police office and take any action pursuant to subsection (2), such office or employee shall inform the concerned police office or body and the police office superior to him/her thereof. (4) If an officer concerned receives information, through someone's information or himself/herself from any source, that an offence specified in Schedule 2 has been committed, is being committed or is about to be committed, such officer shall take action pursuant to subsection (1) or (2).

Provided that, if any police employee has knowledge of such information of the offence and the concerned investigation officer is not immediately available, such police employee shall take the action mentioned in subsection (1) and if any person is arrested, send the details of the action along with such person to the investigation officer.

(5) The police employee or investigation officer may seek assistance from any body, officer or person to prevent loss or destruction of any evidence related to the offence or to arrest the offender, and if such assistance is sought, it shall be the duty of such body, officer or person to provide necessary assistance.

(6) If a police employee, while going to gather information or during his/her presence, has knowledge or information or tip that an offence has been committed, is being committed or is about to be committed, he/she shall immediately arrest the person committing such offence.

(7) If a police employee finds stolen property or any other evidence or object related to the offence, he/she shall take such evidence or object into his/her custody, together with the persons, if any, who were present at the scene and saw the offence, and prepare a record as necessary.

(8) The condition of such object, place or scene of the incident shall be kept secured in the state of status quo until the record preparation process pursuant to subsection (7) is completed.

(9) If it is not possible to immediately take into his/her charge or custody the stolen property and the evidence or object related to the offence obtained pursuant to subsection (7), the concerned police employee may request the local level or any other office to keep such thing or object safely, and if so requested, the concerned level or office shall also take charge of such property or evidence and issue a receipt thereof. Provided that, an object not related to the offence shall be returned to the concerned person immediately. 7.

Notice to be given to concerned Police Office: (1) If, from the contents of the information received at any police office regarding an offence specified in Schedule 1, or if the police office itself learns that such offence has been committed, is being committed or is about to be committed within the area of another police office, such police office shall send such information as soon as possible to the concerned police office and, if necessary, inform the person giving the information also to appear before the concerned police office. (2) Notwithstanding anything contained in subsection (1), if due to geographical remoteness or any other reason the investigation officer is not immediately available and the offender is likely to escape and the stolen items and evidence related to the offence are likely to be lost, the authorized investigation officer of the concerned police office receiving such information may conduct a preliminary investigation regarding the incident within such area and send it to the concerned police office. (3) Before conducting a preliminary investigation pursuant to subsection (2), such officer shall inform the concerned police office and the police office one level above. 8. To Investigate and Collect Evidence: (1) Upon receiving information that an offence specified in Schedule 1 has been committed, is being committed or is about to be committed, the concerned police office shall, as soon as possible, designate a police employee of at least the rank of Police Sub-Inspector as an investigation officer, and inform the concerned Government Attorney Office and the police office superior to it, and the investigation officer so designated shall investigate such offence.

Provided that, for the investigation of the following offences, an officer of at least the rank of Police Inspector shall be designated:-

(a) Offences under Chapter 1, Chapter 12, Chapter 17, Section 219 of Chapter 18, Sections 230, 231, 232, as amended by Some Nepal Acts Amending Act relating to the Muluki Code, 2075.233, 235, 238 of Chapter 19, Section 244 of Chapter 20, Sections 256, 257 and 258 of Chapter 22 of Part 2 of the Criminal Code,

(b) Omitted by Some Nepal Acts Amending Act relating to the Muluki Code, 2075

(c) Other offences designated by the Government of Nepal by a notification published in the Nepal Gazette, considering the seriousness of the offence.

(2) While investigating pursuant to this Section, the investigation officer shall prepare a site record describing the true picture of the offence and the place of the offence, including as far as possible the following details:-

- (a) The date and time of the offence,
- (b) The address, details and sketch plan of the place of the offence,
- (c) The factual situation of such place and its relation to the offence or the offender,
- (d) Any stolen items or evidence seen or found at or near the place of the offence and any other notable facts related to the offence.

(3) While preparing the site as amended by Some Nepal Acts Amending Act relating to the Muluki Code, 2075. record pursuant to subsection (2), the investigation officer may cordon off such place to prevent other persons from entering and may, as far as possible, take photographs of such place and of any palm prints, fingerprints, footprints, marks, signs or other clues seen or found there, or any other important matters that may help in proving the offence.

(4) While preparing the site record pursuant to subsection (2), if the offender or the accused person is present, details revealing his/her identity including fingerprints shall also be taken.

(5) If the investigation officer finds any evidence, items or objects related to the offence, he/she shall take them into his/her custody.

(6) The officer taking evidence, items or objects into custody pursuant to subsection (5) shall issue a receipt thereof to the concerned person.

(7) Investigation of an offence specified in Schedule 2 shall be conducted by the officer designated by law, if any, and if no such officer is designated, by the concerned Chief District Officer or an employee of the officer level designated by him/her.

(8) While investigating such offence, the officer designated pursuant to subsection (7) shall complete the procedures mentioned in subsections (2), (3), (4), (5) and (6).

(9) While investigating a single incident pursuant to this Chapter, all cases that may arise from such incident shall be investigated at once.

9. Person related to Offence may be Arrested: (1) If a person related to an offence is found or is in the act of committing an offence, the police or the investigation officer may arrest him/her.

(2) If a person needs to be arrested immediately pursuant to this Chapter during the course of investigation of an offence, a petition shall be submitted to the case hearing officer for permission to issue an arrest warrant, stating the reason therefor and, as far as possible, details revealing the identity of the person to be arrested.

(3) If a petition is filed pursuant to subsection (2) and the reason for arrest appears reasonable, the case hearing officer may grant permission to issue an arrest warrant on the same petition.

(4) The format of the arrest warrant shall be as mentioned in Schedule 8.

(5) The order pursuant to subsection (3) shall not be made public until the person to be arrested is arrested.

(6) Notwithstanding anything contained in subsection (2), if there is a reasonable reason to believe that the offender, if not arrested immediately, may flee, escape or destroy evidence, clues or proof, an urgent arrest warrant may be issued immediately in the format according to Schedule 9, and the person arrested shall be produced before the case hearing officer for approval.

(7) If a person is arrested by issuing an urgent arrest warrant pursuant to subsection (6), no other investigation related proceedings concerning such offence shall be carried out without obtaining approval from the case hearing officer. Added by Some Nepal Acts Amending Act relating to the Muluki Code, 2075. Provided that, if there is a possibility of destruction, loss or eradication of evidence related to the offence, immediate search may be conducted of the arrested person's body, the items used by him/her, the vehicle, the house or place where he/she lives or stays.

If such a search is conducted, the details thereof, the search warrant and the seizure record shall be prepared and submitted to the case hearing officer.

(8) If the police is not immediately available at the time of the commission of an offence, the person present at the time of the offence or who witnessed the commission of the offence may prevent the person committing such offence from fleeing or escaping and hand him/her over to the nearest police office.

(9) While arresting a person pursuant to subsection (1) or (6), before arresting him/her, an order to surrender shall be given after explaining the reason for arrest.

(10) If, even after being reminded, explained or ordered pursuant to subsection (9), any person does not surrender but tries to avoid arrest or flee or escape, or uses force or without force in any manner uses or attempts to use violence, the police employee may use necessary force to arrest him/her.

(11) If a woman is to be arrested pursuant to this Section, as far as possible, arrest shall be made by a female police officer. Provided that, if a female police officer is not immediately available in the situation requiring arrest, a male police employee shall not be prevented from making the arrest, respecting the physical sensitivity of the woman and without compromising her dignity or reputation.

(12) A person arrested pursuant to this Section may be searched or his/her body may be frisked.

(13) If there is a reasonable cause to suspect that the person to be arrested pursuant to this Section is residing in any house or place, such house or place may be searched and the person may be arrested.

(14) If any person is arrested during a search conducted pursuant to subsection (13), his/her body may also be frisked.

(15) If documents or evidence or any other objects related to evidence are found during a search pursuant to subsection (12) or (13), the person making the arrest or the investigation officer shall take them into his/her custody and issue a receipt thereof.

as amended by Some Nepal Acts Amending Act relating to the Muluki Code, 2075. (16) Notwithstanding anything contained in subsections (1) and (2), if any person commits any offence under Schedule 1 or Schedule 2 in the presence of any police employee or officer or in any government office, such person shall be arrested by the concerned police employee, officer or office chief, preventing him/her from fleeing or escaping, and handed over to the concerned police office or investigation officer.

Added by Some Nepal Acts Amending Act relating to the Muluki Code, 2075. (17) A person arrested and brought in pursuant to subsections (8) and (16) shall be issued an urgent arrest warrant by the concerned police or investigation officer and produced before the case hearing officer for approval pursuant to subsection (6). 10. Preliminary Investigation Report to be sent: (1) As soon as a complaint application or information of an offence specified in Schedule 1 or Schedule 2 is registered pursuant to Section 4, the police employee or investigation officer designated to investigate such offence shall immediately conduct a

preliminary investigation.

(2) After commencing the preliminary investigation pursuant to subsection (1), such police employee or investigation officer shall send a report thereof to the District Government Attorney Office within three days. Explanation: For the purpose of this Chapter, "preliminary investigation" means the site description, factual situation record of the place of offence, search or seizure record, or in the case of an offence involving death, the post-mortem record, and in the case of other offences, the report, record or other necessary details required to be prepared according to the nature of such offence.

(3) After receiving the preliminary report pursuant to subsection (1), the Government Attorney shall study it and, if it appears necessary to give necessary instructions to the investigation officer for further investigation on any matter related to the offence, may give necessary instructions stating the reason therefor.

(4) It shall be the duty of the concerned investigation officer to comply with the instructions given pursuant to subsection (3). 11.

12. Special Team may be Formed to Investigate: (1) Notwithstanding anything contained elsewhere in this Chapter, if the controlling officer of the investigation officer or the Inspector General of Police considers that an offence specified in Schedule 1 or Schedule 2 of this Act cannot be investigated solely by the concerned investigation officer due to its seriousness, and that it is appropriate to form a separate investigation team, he/she may form an investigation team comprising employees under his/her command.

(2) Notwithstanding anything contained in subsection (1), if it is necessary to form an investigation team including persons other than employees under his/her command, the controlling officer of such investigation officer or the Inspector General of Police may, after consulting the Attorney General, form an investigation team including experts and cause an investigation to be conducted.

(3) If an investigation team is formed pursuant to subsection (1) or (2), such team shall conduct the investigation exercising the powers vested in the investigation officer pursuant to this Chapter.

(4) If an investigation team is formed pursuant to subsection (1) or (2), the details of the investigation conducted by the concerned investigation officer shall be transferred to such team.

(5) The investigation team formed pursuant to subsection (1) or (2) shall investigate and submit its report to the concerned Government Attorney, and shall also inform the concerned as amended by Some Nepal Acts Amending Act relating to the Muluki Code, 2075. police office or the office or officer authorized to investigate.

(6) After receiving the report pursuant to subsection (5), if it appears necessary for the Government Attorney to give necessary instructions for further investigation on any matter related to the offence, he/she may give necessary instructions to the investigation team stating the reason therefor.

(7) It shall be the duty of the concerned investigation team to comply with the instructions given by the Government Attorney pursuant to subsection (6). 13.

To Keep in Custody: (1) A person arrested pursuant to this Chapter shall be kept in custody. (2) While keeping in custody pursuant to subsection (1), the person shall be kept in custody only after issuing a detention warrant in the format according to Schedule 10, mentioning the place of arrest and the reason for detention. (3) If a person is kept in custody pursuant to subsection (1), a record shall be prepared containing his/her name, surname, age, address including ward number, father's/mother's name, citizenship certificate or other identification document revealing his/her identity, and if not available, a copy of similar documents

revealing his/her true identity including driving license, passport, and telephone number if he/she has a telephone. (4) For the purpose of subsection (3), the investigation officer may, if necessary, also take the photograph and thumbprints including both palms of the person. (5) After the record is prepared pursuant to subsection (3), the concerned police office or investigation officer shall inform the person requested to be informed by the person in custody that he/she is in custody, based on such record. (6) If a person arrested pursuant to this Section wishes to consult a legal practitioner, the investigation officer shall allow him/her to consult such legal practitioner. 14. Period for Detention for Investigation and Procedure relating thereto: (1) After arresting a person for investigation of an offence pursuant to this Chapter, he/she shall be produced before the case hearing officer as soon as possible within twenty-four hours. (2) No person shall be kept in custody contrary to subsection (1). (3) If a person needs to be kept in custody beyond the period mentioned in subsection (1), the investigation officer shall, stating the basis and reason therefor, submit a petition through the Government Attorney Office to the case hearing officer for permission.

Explanation: For the purpose of this Section, the time required to bring the arrested person from the place of arrest to the as amended by Some Nepal Acts Amending Act relating to the Muluki Code, 2075. police office or the office authorized to investigate, or the time required to produce him/her from the as amended by Some Nepal Acts Amending Act relating to the Muluki Code, 2075. police office or the office authorized to investigate to the court shall not be counted within the period of twenty-four hours.

(4) While submitting a petition to the case hearing officer pursuant to subsection (3), the investigation officer shall clearly state the charge against the person in custody, the basis thereof, the reason for needing to investigate by keeping him/her in custody, and if his/her statement has been taken, the details according to the statement document.

(5) The person being produced for permission to keep in custody pursuant to subsection (3) may, if he/she wishes, submit a petition to the case hearing officer for a medical examination.

(6) When the investigation officer requests permission to keep a person in custody pursuant to subsection (3), the case hearing officer, upon examining the relevant documents, considering whether the investigation has been conducted satisfactorily or not, and if deemed necessary, after also hearing the arguments of the concerned legal practitioner, may order the person to be kept in custody for up to a maximum of twenty-five days at once or in installments, if it appears necessary to keep him/her in custody for investigation.

(7) Notwithstanding anything contained in subsection (6), if the investigation of offences among those under Schedule 1 relating to attack on the President, espionage, subverting the military, waging war against the State of Nepal or assisting a state at war with Nepal, or explosives, abduction and hostage-taking cannot be completed within the time limit given pursuant to subsection (6), the investigation officer and as amended by Some Nepal Acts Amending Act relating to the Muluki Code, 2075. may jointly submit a report with reasons to the case hearing officer.

(8) Upon submission of the report pursuant to subsection (7), the case hearing officer may, considering the status of the investigation, order the person to be kept in custody for up to a maximum of an additional fifteen days at once or in installments.

Provided that, no person accused of an offence shall be kept in custody for a period longer than the term of imprisonment that he/she may receive if convicted of such charge.

(9) When the case hearing officer orders detention pursuant to subsection (6) or (8), a reasoned record sheet shall be prepared.

(10) Notwithstanding anything contained elsewhere in this Section, if the investigation officer considers it reasonable to investigate a woman more than seven months pregnant, a child, or a person aged over seventy-five years without detaining them, considering the nature of the offence, he/she may prepare a reasoned record and investigate by keeping them on bail. 15. Investigation Officer may Release Person in Custody: (1) If it is not considered necessary or appropriate to keep a person in custody during the course of investigation pursuant to this Act, the investigation officer, after obtaining the consent of the Government Attorney, or if such consent cannot be obtained immediately, after preparing a reasoned record, may release such person on surety or bail or on personal recognizance of some responsible person, or keep him/her on bail.

(2) When releasing on surety or bail or keeping on bail pursuant to subsection (1), an undertaking shall be obtained from the person so released or kept on bail to appear if the case is prosecuted against him/her.

(3) The person providing personal recognizance pursuant to subsection (1) shall produce the person released on personal recognizance at the time specified by the investigation officer or the Government Attorney Office.

(4) If such person is not produced at the specified time pursuant to subsection (3), the investigation officer may impose a fine of up to fifty thousand rupees on the person providing personal as amended by Some Nepal Acts Amending Act relating to the Muluki Code, 2075. recognizance.

(5) If investigation is conducted by keeping a person on bail pursuant to subsection (1), the investigation officer shall inform the Government Attorney and the superior police office thereof. 16.

To Take Statement and Conduct Interrogation: (1) The investigation officer shall take the statement of the accused before the Government Attorney regarding an offence under Schedule 1 or Schedule 2. (2) While taking a statement pursuant to subsection (1), the Government Attorney shall have the right to ask necessary questions to be (6) Notwithstanding anything contained in sub-section (3), after the post-mortem examination of the corpse under sub-section (2) is completed, if it does not appear from such examination that the death resulted from any offence or in suspicious circumstances and that a post-mortem (autopsy) of such corpse is not necessary, the investigating officer shall, stating the reasons thereof, prepare a note in the presence of local respectable persons and attach it to the case file. (7) If the corpse is in a decomposed or mutilated state and cannot be examined, or if it appears so, the concerned investigating officer shall, disclosing such fact, prepare a report (muculka) in the presence of local respectable persons and keep it on record. Provided, however, that even if the corpse has decomposed or putrefied or cannot be autopsied, if the cause of death can be determined by other examination of the corpse or any part thereof, other scientific examinations may be conducted. (8) After the autopsy of the corpse has been completed or a note has been prepared under sub-section (6), the concerned police personnel shall hand over the corpse to the concerned heir of the deceased after obtaining a receipt. (9) If the heir does not accept the corpse under sub-section (8), or if no heir is present, or if the heir is not identified, the concerned police personnel shall arrange for the final rites of the corpse at government expense. (10) While conducting an autopsy or examining a corpse or collecting any other evidence, the investigating officer may, if deemed appropriate depending on the gravity of the offence, take along a concerned expert. (11) If the expert or physician conducting the autopsy under this section deems it necessary to have the autopsy conducted by a team of more than one expert to ascertain the actual cause of death of any person or to investigate any other matter related to the offence, or if the investigating officer deems it appropriate to have the autopsy conducted by a team of experts regarding the cause of death of any person, the autopsy may be conducted by such team. 21.

22. Injury examination to be conducted: (1) If any incident occurs due to assault causing wounds, injuries,

bruises or marks, etc., and the concerned person files an application for examination thereof, or if a written request is made by the investigating officer, the government doctor or health worker shall examine the wounds, injuries, bruises or marks of such person and prepare an injury examination report in the format as per Schedule-16.

(2) Apart from as mentioned in sub-section (1), if a person detained in custody during the course of an investigation files an application, or someone else files an application on his behalf, showing reasonable grounds that evidence of assault, torture or any other offence committed against him may be obtained through a medical examination of his person, the court may order such person to be physically examined by a government doctor or a doctor or health worker designated by the Government of Nepal.

(3) While conducting a physical examination under sub-section (2), the injury examination as mentioned in sub-section (1) shall also be provided.

(4) The examination report prepared under sections 20, 21 and this section shall be made available by the concerned doctor, expert or laboratory to the concerned office or investigating officer within a maximum of three days, excluding the time required for transit, from the date of such examination.

(5) If a person taken into custody appears to have been assaulted or tortured as referred to in sub-section (2), the court shall order the concerned Amended by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075. police office or the office or officer authorized to conduct the investigation to provide treatment to the person so assaulted or tortured and provide interim relief, and to take departmental action against the person who assaulted or tortured him in accordance with law. Added by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075. (6) If the investigating officer fails to send a written request to the government doctor or health worker for an injury examination under sub-section (1), the concerned person may file an application to the court stating such fact, and upon receipt of such application, the court may order the government doctor or health worker to conduct the injury examination. 23.

Expert opinion may be obtained: (1) The investigating officer may, if deemed necessary in the context of the investigation, take along an expert or obtain the opinion of an expert on any matter related to the offence. (2) If an opinion is requested under sub-section (1), it shall be the duty of the concerned expert to provide such opinion. (3) The expert opinion obtained under sub-section (2) shall be attached to the case file. (4) If the expert person under this section is a non-government person, the expenses incurred for availing his services shall be borne by the Government of Nepal. (5) Notwithstanding anything contained elsewhere in this section, if the investigating officer, due to the sensitivity or complexity of a case, deems it appropriate to obtain an opinion from a medical board or a board of any other experts in such case and recommends accordingly, the Government of Nepal may constitute such a board. (6) Once a board is constituted under sub-section (5), such board shall provide its opinion in that regard. 24. Identification to be conducted: (1) If any person is to be identified in a case, a police personnel of at least the rank of Police Deputy Inspector shall conduct the identification. Provided, however, that the sole fact that identification was not conducted shall not materially affect the proceedings of the case. (2) While conducting identification under sub-section (1), the person to be identified shall be kept in a place where he cannot be seen by the identifier(s), and the person to be identified shall be placed together with at least four other persons of similar age, complexion or physical appearance, dressed as far as possible in similar attire, and each person conducting the identification shall be made to identify separately. (3) The format of identification shall be as set forth in Schedule-17. (4) While conducting identification under sub-section (2), a record stating whether the identifier(s) were able to identify or not shall be prepared and attached to the case file. (5) A police personnel of the rank of Police Deputy Inspector may

conduct identification of any article or thing related to the case by preparing an identification report (muculka).
25.

Amended by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075. Investigation diary to be maintained: (1) The Amended by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075. police officer or investigating officer conducting investigation under this Chapter shall, for the purpose of immediately recording every action taken by him in relation to the investigation, prepare an Amended by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075. investigation diary in the format as per Schedule-18. (2) In the diary prepared under sub-section (1), such Amended by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075. police officer or investigating officer shall record the following matters:- (a) The date and time of receiving information about the offence and a brief description thereof, (b) The work and actions taken by him in the course of the investigation, (c) The places visited by him in the course of the investigation, (d) The clues, evidence and other necessary things obtained in the course of the investigation, (e) If anyone has been arrested in the course of the investigation, the details thereof, (f) The name, address and the statement made by the person he questioned in the course of the investigation regarding the offence, (g) The demeanor of the persons arrested or examined, (h) Other relevant facts or information obtained in the course of the investigation. (3) The diary prepared under sub-section (1) may be summoned and inspected by the government attorney or the court as required. Removed by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075. (4) An officer superior to the concerned investigating officer may, if he so desires, inspect the matters recorded in the diary prepared under sub-section (1) and also give necessary directions in the context of the investigation. 26. Opinion, advice may be sought regarding investigation: (1) While conducting investigation under this Chapter, the concerned investigating officer may seek the opinion or advice of the government attorney on any matter. (2) If an opinion or advice is sought under sub-section (1), the concerned government attorney shall provide his opinion or advice. (3) While giving opinion or advice under sub-section (2), if the government attorney deems it necessary to conduct further investigation on any matter, or to collect additional evidence, or to seize any clue evidence, or to obtain information from someone, he may direct the concerned investigating officer to do or cause to be done accordingly. (4) It shall be the duty of the concerned investigating officer to comply with the directions given under sub-section (3). 27.

Attorney General may give necessary directions in the context of investigation: (1) The Attorney General may obtain necessary information regarding the ongoing investigation in any criminal case to be filed by the Government of Nepal. (2) Upon obtaining information under sub-section (1), if it appears that the investigation of an offence in which the Government of Nepal is the plaintiff is inadequate, or that a particular measure, method or procedure should have been adopted in such offence but was not adopted, or that further investigation is required, the Attorney General may, at any time, give directions to the investigating officer or his departmental head regarding the investigation. (3) It shall be the duty of the concerned investigating officer to comply with the directions given under sub-section (2). 28. Record of complaint application to be maintained: (1) When submitting an application to the court for permission to detain an arrested person under sub-section (3) of section 14, the investigating officer shall, through the government attorney, submit a copy of the complaint application or information received by the police office or investigating officer to the officer hearing the case. (2) The officer hearing the case shall maintain a separate record of the application or information under sub-section (1). 29. May be sent to the concerned body: Notwithstanding anything contained elsewhere in this Act, if during the investigation of an offence under Schedule-1 or Schedule-2, it appears that the investigation needs to be conducted under any other law, the matter may be sent, along with the progress report of the investigation, to the concerned body or officer responsible for investigating such

offence. 30.

Investigation of offences committed outside Nepal: (1) In relation to an offence committed outside Nepal, if there is a legal provision for the case to be heard in a court in Nepal, then, notwithstanding anything contained elsewhere in this Act, the investigation of such offence conducted by fulfilling the procedure according to the following clauses shall be deemed to have been regularly conducted under this Act:- (a) If there is a treaty with any country allowing the investigation of criminal offences triable in Nepalese courts to be conducted by the authorized investigating officers of the other country, an investigation conducted according to the provisions of such treaty, (b) If there is no treaty as per clause (a), an investigation conducted by an investigating officer designated by the Government of Nepal, with the permission of the country where the offence occurred obtained through diplomatic channels and with the assistance of the authorized officer of that country, (c) If investigation cannot be conducted as per clause (a) or (b), an investigation conducted by the authorized investigating officer of the country where the offence occurred, (d) If it is also not possible as per clause (c), an investigation conducted by the authorized investigating officer of the area where the accused is found, or if the accused is not found, of the area where the accused has his permanent residence. (2) If the investigation report or related documents under sub-section (1) are in a language other than Nepali, an authentic translation of such documents into Nepali shall be prepared and submitted to the court. (3) If it appears from the investigation conducted under sub-section (1) that a case should be filed against any person, the concerned government attorney shall prepare a charge sheet under this Chapter and file the case in court. Added by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2080.30A. Action to be taken on money laundering offence: While investigating an offence relating to improper transactions, if it appears that a creditor has given an abnormally large amount of loan informally (ghersar), an investigation shall be conducted and action shall be taken for the offence of money laundering in accordance with the prevailing law. 31.

Investigation report to be submitted: (1) Upon completion of the investigation of any offence under Schedule-1 or Schedule-2, if it appears that there is sufficient evidence to prosecute all or any of the persons suspected of having committed the offence, the investigating officer shall prepare an investigation report stating under which law such person is to be punished, and if it appears that no offence has been committed, or even if an offence has been committed the person who committed it cannot be identified, or there is insufficient evidence to prosecute any person, the investigating officer shall, stating such fact, prepare an investigation report in the format as per Schedule-19 along with the original and copy of the case file and documents and the clue evidence, and send it to the concerned government attorney's office. (2) While sending the report under sub-section (1), in the case of a non-custodial case, it shall be sent at least fifteen days before the expiration of the limitation period under the relevant law, and in the case of a custodial case, it shall be sent at least three days before the date of filing the case, taking into account the time required for deciding whether to prosecute or not, preparing the charge sheet and filing it in court. (3) Upon receipt of the file along with the investigation report under sub-section (1), the concerned government attorney shall study the file, evaluate the evidence collected during the investigation, and send the file to the Attorney General for a decision on whether to prosecute or not. Amended by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075. Provided, however, that if the authority to decide whether to prosecute or not has been delegated by the Attorney General to a subordinate government attorney, such file shall be sent to the concerned government attorney.

Explanation: For the purposes of this section, "subordinate officer" means a government attorney under the Attorney General, and the term also includes any officer or employee of the Government of Nepal authorized

by the Attorney General to prosecute any other case where the Government of Nepal is the plaintiff, except where otherwise provided in the Constitution. (4) While studying the file in the course of deciding whether to prosecute or not under sub-section (3), if the government attorney finds it necessary to collect additional evidence, or conduct further investigation, or conduct further questioning of any person, he may direct the investigating officer to collect such evidence, conduct further investigation, or question such person and send the report accordingly. (5) If the government attorney directs further investigation of an offence under sub-section (4), the investigating officer shall complete such further investigation within fifteen days from the date of receipt of such direction. (6) If it appears to the investigating officer that the further investigation under sub-section (5) cannot be completed within the period specified in that sub-section, and if any person is in custody, the investigating officer may release such person on bail with or without surety of a respectable person. (7) If the investigating officer submits a report to the government attorney stating that a case cannot be filed against any person under this section, and if any person is in custody during the course of the investigation, the investigating officer shall keep such person in custody until the government attorney decides whether or not to prosecute. Added by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075.(8) Notwithstanding anything contained elsewhere in this Chapter, even if a decision has been made not to prosecute an offence under Schedule-1 or Schedule-2 due to lack of evidence, if any important evidence is obtained subsequently, a further investigation may be conducted in relation to such offence and a charge sheet may be filed. Chapter-3 Prosecution and Case Filing 32.

Charge sheet to be filed: (1) When studying the file to decide whether or not to prosecute under sub-section (3) of section 31, if sufficient evidence for prosecution is found from the collected evidence, the concerned government attorney shall, in the case of an offence under Schedule-1 or Schedule-2, prepare a charge sheet in the format as per Schedule-20 stating the following details and submit it to the concerned court within the limitation period:- (a) Full name, surname, address, description, age, profession or occupation of the accused, (b) Name of the father, mother or husband/wife of the accused, (c) Rural municipality or municipality, ward number, village, tole, and if available, block number where the accused resides, (d) Details for actual identification of the accused, his photograph, copy of citizenship or passport, driving license or other documents revealing his true identity, (e) Fingerprints of both index fingers of the accused, if available, (f) If residing as a tenant in another's house, details including the name, surname and address of the landlord, (g) Details of the information related to the offence, (h) Details of the offence, Added by the Act Amending Some Acts relating to Prevention of Money Laundering and Promotion of Business Environment, 2080.(h1) If the offence being prosecuted appears to be a predicate offence under the law relating to prevention of money laundering, a claim for punishment for the offence of money laundering as well, if any, (i) Details of the clues and evidence proving that the accused committed the offence, (j) The accusation made against the accused and the bases and reasons thereof, Added by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075.(j1) If any accused is absconding, details of his property and other matters, and if he holds any public office, details thereof, Added by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075.(j2) If the offence charged involves moral turpitude, a claim to that effect, (k) The relevant law to be applied and the reason therefor, (l) The claim for the punishment to be imposed on the accused and the reason therefor, (m) If compensation is to be awarded to the person harmed by the offence, the amount of such compensation, (n) Details of any other relevant matters related to the nature of the offence. (2) While submitting the charge sheet under sub-section (1), the collected evidence, Amended by the Act Amending Some Acts against Sexual Violence, 2079.clues and articles related to the offence shall be submitted, and in the case of an offence of rape, along with the victim if possible, and the accused if in custody.

Added by the Act Amending Some Acts against Sexual Violence, 2079.(2a) If the victim is produced under sub-section (2) at the time of submitting the charge sheet, her statement shall be recorded immediately, and the defendant shall be given an opportunity to cross-examine under sub-section (7) of section 101.

(3) In the charge sheet to be submitted under sub-section (1), if the law has given a specific name to the offence proposed to be charged against the accused, the same name shall be mentioned for that offence.

(4) If no specific name has been given to the offence in the prevailing law under sub-section (3), the accusation made against the accused shall be named according to the nature of the offence, considering the elements of the offence, so that the accused can clearly understand it.

(5) If it comes to knowledge that the accused has previously been punished for any offence, or if any other case has been filed against him, and due to that reason a more severe punishment is required, the date of previous punishment, the name of the court that imposed the punishment, and the case number shall be mentioned in the charge sheet filed under sub-section (1), or at the time it subsequently comes to light.

(6) If the government attorney decides not to prosecute under sub-section (3) of section 31 because the evidence collected at that time is not sufficient to prosecute any person for an offence, and if such offence also involves civil liability matters relating to private property or compensation for loss or damage to any person, the government attorney shall give information thereof to the complainant or the person harmed by such offence through the concerned investigating officer.

(7) Upon receipt of information under sub-section (6), notwithstanding anything contained in the prevailing law, if the concerned person wishes to file a case within sixty days from the date of receipt of such information, he may file a case as if it were an offence under Schedule-4.

(8) If, during investigation under this Act, an investigation has been conducted against more than one person, but a case is filed against only some of them, or if an investigation was conducted as a case where the Government of Nepal is the plaintiff but it appears from the investigation that such case cannot proceed with the Government of Nepal as the plaintiff under this Act and may proceed under another law or as a private case, the concerned government attorney shall immediately send information thereof to the concerned High Government Attorney's Office and the Office of the Attorney General.

(9) After receiving information under sub-section (8), the Amended by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075.chief of the High Government Attorney's Office shall study the matter and decide whether or not to file a case, and if reasonable grounds appear to file a case, he shall, stating the reason thereof, direct the concerned government attorney to file the case, and upon receipt of such direction, that government attorney shall file a charge sheet or supplementary charge sheet and proceed against the person not previously prosecuted.

(10) If the Amended by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075.chief of the High Government Attorney's Office decides not to prosecute under sub-section (9), information thereof shall be given to the Office of the Attorney General.

(11) After receiving information under sub-section (10), the Office of the Attorney General may give necessary directions to the concerned government attorney regarding whether or not to file a case.

(12) If information is received under sub-section (8) that the case may proceed under another law, and if such fact appears reasonable, the High Government Attorney's Office shall give information thereof to the concerned person.

(13) Except as otherwise provided in this Chapter, if a deposit or guarantee has been taken from any person during the course of the investigation, Amended by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075, after an order regarding detention or bail is made upon the case being filed against him, unless otherwise ordered by the court, and if a decision not to prosecute is made, the deposit or guarantee so kept shall be returned to such person.

33. Charge sheet may be filed with a claim for reduction of punishment: (1) Notwithstanding anything contained elsewhere in this Chapter, if the accused of any offence has assisted the investigating officer in the investigation of such offence, the investigating officer may recommend to the government attorney for a concession in the punishment leviable to such accused under the law.

(2) If a recommendation is made under sub-section (1) Amended by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075, or if it appears from the investigation report or documents in the case file that the accused has assisted in the investigation, the government attorney may, considering such recommendation or assistance, file a charge sheet with a conditional claim proposing a concession in the punishment for such accused.

(3) While filing a charge sheet under sub-section (2), the government attorney may file the charge sheet proposing a concession in punishment as follows:-

(a) If the accused fully admits the offence committed by him before the investigating officer or government attorney and confesses, a concession of up to twenty-five percent in the punishment leviable to him,

(b) If the accused, having confessed to the offence in which he is involved, assists in revealing the other offenders or gang involved in that offence, or the main person directing the commission of the offence, or detailed facts about the offence, or in arresting the persons involved in the offence, or if it is an organized or group offence, in revealing other persons involved in that offence or the place of criminal conspiracy for such offence, or in seizing or confiscating the vehicle, instrument, equipment or other objects or weapons used in committing the offence, a concession of up to fifty percent in the punishment leviable to him.

(4) For the purpose of claiming a concession in punishment under sub-section (2), it must be clearly apparent from the case file and attached documents that the accused has rendered such assistance.

(5) Notwithstanding anything contained elsewhere in this section, a claim for concession in punishment cannot be made in relation to the following offences or circumstances:-

(a) A person who has already availed the facility under this section once,

(b) A person who, having been sentenced to imprisonment, has not completed three years of such imprisonment,

(c) A person who has been punished once before for the same type of offence for which he is being charged.

(6) Once a charge sheet has been filed with a claim for concession in punishment under sub-section (2), if the accused makes a statement in court different from the one made before the investigating officer or government attorney, or gives adverse evidence, or denies his guilt, or does not cooperate in the judicial proceedings, he shall not be entitled to the facility under this section.

(7) In the situation under sub-section (6), the government attorney shall file an application in court to cancel the proposed concession in punishment under sub-section (1) or (2) and seek additional punishment, and such application shall be an integral part of the same charge sheet.

34. Filing of case not necessary in certain types of petty offences: (1) Amended by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075. If it appears that filing a case for a certain type of petty

offence under Schedule-1 or Schedule-2 is not practical or does not substantially affect the public interest, the government attorney may, with the approval of the Attorney General, decide not to file a case against such person.

(2) Before making a decision under sub-section (1), the government attorney shall obtain an undertaking from such accused that he will not commit such an offence in the future.

(3) For the purposes of this section, "certain types of petty offences" means the following offences:-

(a) An offence of pickpocketing with a loss of up to one thousand rupees committed for the first time,

(b) An offence of begging committed for the first time,

(c) Any other offence committed for the first time punishable with a fine of up to three thousand rupees or imprisonment of up to one month or both.

(4) Before deciding not to file a case under this section, the government attorney shall confiscate the loss (bigo) from the offence.

(5) Amended by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075. The loss confiscated under sub-section (4) shall be given to the person harmed by the offence, if any, and if not, shall be deposited in the Victim Relief Fund established by law.

(6) If a case is not filed under sub-section (1), and if such person commits any offence under this Act within three years from that date, the punishment for the earlier offence shall also be added.

(7) Notwithstanding anything contained elsewhere in this section, if the government attorney decides not to file a case, the aggrieved party who is dissatisfied with such decision may file a case on his own behalf.

(8) If a decision not to file a case is made under sub-section (7), the victim shall be informed immediately, and the limitation period under the law shall be deemed to have commenced from the date of receipt of information about such decision.

(9) The concerned government attorney shall provide copies of the investigation documents conducted under this Chapter to the person filing the case under sub-section (7). 35.

Additional claims may be made: After a case has been filed in court, if it appears from other related additional evidence in such case that claims need to be made against other accused persons besides the ones already charged, or if it appears necessary to add additional charges against a person who has already been made an accused in the filed case, the government attorney may, stating the reason thereof, have further investigation conducted and file a case with additional claims against the additional accused persons as well.

36. Charge sheet may be amended: (1) If, after a case has been filed in court once, additional evidence is found and it appears necessary to amend the claim previously made, the concerned government attorney may, with the approval of the Attorney General, submit an application stating the reasons to the concerned court of first instance for amendment of the charge sheet. (2) If an application is filed under sub-section (1) and the contents thereof appear reasonable, the concerned court may order the amendment of the claim in the charge sheet as per the application. Provided, however, that such order for amendment must be given by the concerned court of first instance before rendering its judgment. 37. Order may be given to correct minor errors:

(1) If there is a minor error in the charge sheet of a case filed in court and it needs correction, the concerned government attorney may submit an application to the concerned Amended by the Act Amending Some Nepal Acts relating to the Muluki Criminal Code, 2075. court stating the reason thereof. (2) Upon examining the application filed under sub-section (1), if it appears reasonable to correct the error, the court

may order the correction of such error. Explanation: For the purposes of this section, "minor error" means an error relating to the spelling or typing or printing of the name, surname, age or address of the accused. 38. Preservation of clues, evidence and accused: (1) When the investigating officer submits the file along with the investigation report for prosecution to the government attorney, he shall keep the clues, evidence and the accused related to the offence under his control, and shall submit them to the concerned court immediately upon the order of the concerned government attorney. (2) Except as mentioned in sub-section (1), if, after a case has been filed in court under this Chapter, any further evidence, proof, object, document or clue is found, the concerned police office shall deposit it with the concerned government attorney's office, and such government attorney's office shall, after necessary examination, submit such documents, clues, evidence to the court. 39.

To be kept safe: (1) If the government attorney decides not to prosecute under sub-section (3) of section 31, the case file and the objects of clues and evidence shall be sent back immediately to the concerned police office. (2) The concerned police office shall keep the case file, clues, evidence, and objects received under sub-section (1) in safe custody for the duration of the limitation period for filing a case for such offence. (3) If the clues, evidence or objects under sub-section (1) are the property of someone, the police office shall return such property to the owner upon executing a bond with the condition to deposit it with the investigating officer or court when required. 40. Copy or information to be given: (1) If the government attorney decides not to prosecute under sub-section (3) of section 31, a copy of such decision, and if a decision to prosecute is made, a copy of the charge sheet shall be given to the concerned investigating officer and the accused. (2) If the concerned government attorney decides that there is not sufficient evidence to prosecute in any case under Schedule-1 or Schedule-2, he shall give information of such decision to the concerned investigating officer and to the officer or office superior to such investigating officer. 41. Notice to be given to the complainant or victim: If a decision not to prosecute is made under sub-section (3) of section 31 in relation to any offence, the investigating officer shall, as soon as possible, give notice stating the reasons thereof to the complainant or the victim. 42. Making the concerned person a party: (1) While a case filed by the Government of Nepal as plaintiff under this Act is being proceeded with, if it appears that the case does not fall within Schedule-1 or Schedule-2 but some other case may proceed under law, the court shall so order and give notice thereof to the concerned person. (2) If the concerned person accepts such case within two months from the date of receipt of notice under sub-section (1), he shall be made the plaintiff party and the case shall be proceeded with and decided under law from the same case file. 43.

Filing of case: (1) The following cases required to be filed under this Act may be filed in the concerned court by the following officer or person:- (a) Cases relating to offences under Schedule-1 and Schedule-2, in the form of a charge sheet, by the concerned government attorney, (b) Cases relating to offences under Schedule-3, in the form of a complaint or report, by the Government of Nepal, a constitutional body, court or any public officer, (c) Cases relating to offences under Schedule-4, in the form of a plaint, by a person having the right to file such case or a concerned person. (2) If a case is filed under sub-section (1), such case shall be deemed to have been filed under this Act. 44. No punishment for turning approver or lodging complaint: (1) In cases relating to offences under Schedule-1, Schedule-2 and Schedule-3, no punishment shall be imposed for turning approver or lodging a complaint. (2) Notwithstanding anything contained in sub-section (1), if a person, by showing something or evidence of a nature that would be believed by the Government of Nepal, police personnel or other authority, turns approver or lodges a complaint, and an investigation is conducted on that basis and a case has proceeded in court, and thereafter, if a report, complaint or statement is made or it appears from any witness's testimony or otherwise that such thing or evidence was false or fabricated, the court may, upon taking evidence from the same case file, do the following:- (a) Punish a

witness who writes down false things or gives fabricated testimony with imprisonment of up to three months or a fine of up to five thousand rupees or both, Provided, however, that while imposing such punishment, the imprisonment or fine shall not exceed half of the punishment leviable to the offender. (b) If the court believes that the act of writing down false things or presenting fabricated evidence or lodging a complaint or turning approver was done by a witness due to personal spite or being misled by some inducement, and not due to a reasonable cause, the court may order such witness, considering the nature and circumstances of the case, to pay reasonable compensation to the acquitted defendant from the same case. Provided, however, that if the witness gives a reasonable cause for giving adverse testimony or lodging the complaint, compensation shall not be imposed. Chapter-4 Jurisdiction of Courts 45. Court of the area where the offence committed to hear the case: The authority to conduct proceedings and adjudicate a case relating to any offence shall vest in the court of the area where such offence was committed.

Provided, however, that the Government of Nepal may, under law, establish a separate criminal court or criminal bench in any district to conduct and adjudicate or cause to adjudicate such offences. 46. If offence relates to different areas, court of any such area may hear the case: In the following circumstances, the court of any area may conduct proceedings and adjudicate the case:-

- (a) If an act constituting an offence occurred partly in one area and partly in another, the court of any of such areas,
- (b) If an act occurred in one area and its result manifested as an offence in another area, the court of any of such areas,
- (c) If different offences were committed in different areas in the course of the same incident, the court of the area where any of such offences was committed,
- (d) If an offence was committed in different areas and it cannot be ascertained in which area the act constituting the offence was completed, the court of any of such areas,
- (e) In the case of an offence of kidnapping or hostage-taking, the court of the area where such offence was committed or where the kidnapped or hostage person is kept, concealed or detained,
- (f) If an offence is committed by a person travelling, or against a person travelling, or in relation to goods being transported from one area to another, the court of the area where the offence commenced, or any

(6) Notwithstanding anything contained in sub-section (5), the following person may lodge a separate complaint within sixty days of the filing of the charge sheet amended by the Nepal Acts Amending Relating to the Civil Code, 2075. for compensation for the loss caused by any offense:

- (a) The person who has suffered loss from the offense,
- (b) Any close relative of a public servant who, in the course of his/her duty, is posted elsewhere or is abroad, in relation to a matter that the public servant should complain about,
- (c) A person holding a position, post, or any other capacity, in relation to any work that a person is required to perform or any matter that a person is required to protect by virtue of such position, post, or capacity,
- (d) In relation to a matter for which a person with a disability, a child, a person over the age of seventy-five, or a person incapacitated by physical or mental illness is entitled to complain, the close relative living in the same household of such person, and if there is no such relative, any other relative or guardian,
- (e) Where an organized institution has suffered loss from an offense, the authorized director or member, administrator, or chief executive officer who primarily works for such institution.

53. Persons who may lodge a complaint: (1) Unless otherwise provided in this Act, any person mentioned below may lodge a complaint in court regarding any offense listed in Schedule-4 added by the Nepal Acts Amending Relating to the Civil Code, 2075.:

- (a) The person who has suffered loss from the offense,
- (b) Any close relative of a public servant who, in the course of his/her duty, is posted elsewhere or is abroad, in relation to a matter that the public servant should complain about,
- (c) A person holding a position, post, or any other capacity, in relation to any work that a person is required to perform or any matter that a person is required to protect by virtue of such position, post, or capacity,
- (d) In relation to a matter for which a deaf or blind child, a person over the age of seventy-five, or a person incapacitated by physical or mental illness is entitled to complain, the close relative living in the same household of such person, and if there is no such relative, any other relative or guardian,
- (e) Where an organized institution has suffered loss from an offense, the authorized director or member, administrator, or chief executive officer who primarily works for such institution.

(2) When lodging a complaint under sub-section (1), it shall be submitted in the format according to Schedule-21, disclosing the following details:

- (a) Amended by the Nepal Acts Amending Relating to the Civil Code, 2075. The name, surname, residence (including locality), description, age, profession or occupation, and name of father, mother, husband or wife of the accused or defendant,
- (b) Amended by the Nepal Acts Amending Relating to the Civil Code, 2075. The citizenship, passport, driver's license, or other easily traceable identification details of the accused or defendant,
- (c) Amended by the Nepal Acts Amending Relating to the Civil Code, 2075. The rural municipality or municipality, ward number, village, locality, block number if available, and other known details of the accused or defendant's residence,
- (d) If residing as a tenant in another's house, the name, surname and address of the landlord, if known,
- (e) Amended by the Nepal Acts Amending Relating to the Civil Code, 2075. If the permanent residence of the accused or defendant is not known, the name, surname and residence of the owner of the house where he/she resides,
- (f) Details of the offense,
- (g) If more than one offense has been committed at the same time, amended by the Nepal Acts Amending Relating to the Civil Code, 2075. each charge or allegation made against the accused or defendant and the evidence relating thereto,
- (h) The relevant law to be applied and the basis thereof,
- (i) Amended by the Nepal Acts Amending Relating to the Civil Code, 2075. The demand for punishment to be imposed on the accused or defendant and the basis thereof,
- (j) The loss caused by the offense and, if compensation is to be recovered from the accused or defendant, the amount of compensation and the basis thereof,
- (k) Other necessary matters.

(3) When lodging a complaint under sub-section (1), along with such complaint, copies of the complaint equal to the number of accused or defendants, and one copy of the written evidence that the complainant wishes to submit, must also be filed.

54. Joint prosecution may be conducted: (1) A case may be conducted against the following persons through a single charge sheet, report, complaint, plaint or order sheet:

- (a) Persons who commit the same or different offenses in the course of the same act,
- (b) Persons who, even if not in the course of the same act, jointly or in collusion commit one or more offenses, or

(c) Persons who commit different offenses connected with each other.

(2) In the case of persons involved in the following offenses, a case may be conducted through a single charge sheet, report, complaint, plaint or order sheet:

(a) Attempt to commit an offense, abetment or criminal conspiracy,

(b) An offense where the person is an accomplice,

(c) An offense of keeping, buying, selling, giving or receiving any article obtained from an offense,

(d) An offense of keeping, selling, giving or receiving any article with the intention of committing an offense, or

(e) An offense of concealing or harboring any person connected with an offense. 55. Separate complaint to be lodged for each offense or accused: Except as otherwise provided in sections 53 and 54, a separate charge sheet or complaint shall be lodged or a separate order sheet shall be prepared for each offense or accused. 56. To make the Government of Nepal the plaintiff: In cases relating to offenses under Schedule-1 and Schedule-2, except cases conducted upon a complaint under sub-section (2) of section 52, the Government of Nepal shall be made the plaintiff and the case proceedings shall be conducted accordingly.

Chapter-6

Arrest Warrant and Summons

57. Arrest or issuance of summons: (1) After a complaint is lodged under this Act, in cases relating to offenses mentioned in Schedule-1 and Schedule-2, the court shall, subject to this Chapter, issue an arrest warrant or summons as necessary to secure the attendance of an accused who has not appeared with the complaint.

(2) The court shall issue an arrest warrant under sub-section (1) to secure the attendance of an accused in the following offenses:

(a) Heinous offense or serious offense,

(b) An offense of attempt, abetment or criminal conspiracy to commit any offense mentioned in clause (a), or an offense of being an accomplice in such offense, or an offense of concealing or harboring an accused of such offenses.

(3) For offenses other than those mentioned in sub-section (2), the court shall issue a summons as necessary to secure the attendance of the accused in court.

Provided that, if there is reasonable cause to believe that the accused is likely to abscond and cannot be arrested, or if the accused fails to appear in court within the period specified in the summons, the court may issue an arrest warrant under sub-section (2) in respect of such accused.

(4) If there is reasonable cause to believe that any document or evidence required to be submitted in court is likely to be concealed or destroyed, or if any document or evidence is not submitted in court within the period specified in the summons issued under sub-section (3), the court may issue an arrest warrant to arrest and produce the person who has the duty to submit such document or evidence.

(5) Where an arrest warrant is issued under sub-section (4), the court may order any employee or police officer to search the place where the document or evidence mentioned in that sub-section is located and submit it in court.

(6) When an employee or police officer under sub-section (5) searches any place, it shall be done in accordance with section 18.

(7) When the court issues an arrest warrant or summons to secure the attendance of an accused under this section, a notice in the format according to Schedule-22, disclosing the substance of the complaint, shall also be sent. 58. Procedure for issuing arrest warrant: (1) When issuing an arrest warrant under this Chapter, the court shall clearly mention the full name and address of the person to be arrested and the reason for arrest, and issue the warrant in the format according to Schedule-23 in the case of an accused, and in the format according to Schedule-24 in the case of a witness or other person.

(2) The arrest warrant issued under sub-section (1) shall be signed and sealed by the concerned officer and bear the seal of the court.

(3) When issuing an arrest warrant under sub-section (1), it shall be issued in the name of the police office of the area where the person to be arrested resides or is likely to reside.

Provided that, if the court deems necessary, the arrest warrant may also be issued in the name of an employee of the court itself.

(4) An arrest warrant issued under this section shall remain in force until it is served or cancelled by the court.

(5) A person against whom an arrest warrant has been issued may be arrested in accordance with such warrant, and when arresting any person accordingly, the arrest warrant shall be shown to him/her and the notice sent under sub-section (7) of section 57 shall also be given to him/her.

(6) A person arrested under an arrest warrant shall be produced before the concerned court as soon as possible, not exceeding twenty-four hours excluding travel time.

(7) If the person to be arrested is not found within seven days from the date the police received the arrest warrant, the concerned police office shall continue searching for him/her and thereafter go to the house address where such person resides and, in the format according to Schedule-25, deliver a thirty-five-day arrest warrant issued in his/her name to an adult member of his/her household, and keep the receipt thereof in the case file.

(8) If the person under sub-section (7) refuses to receive such warrant or is not found, the warrant shall be affixed on the door of his/her house in the presence of a member of the concerned ward committee of the local level, if available, and if he/she is also not available, at least two amended by the Nepal Acts Amending Relating to the Civil Code, 2075.local persons as witnesses, and one copy of the warrant shall be brought and submitted to the court.

(9) One copy of the warrant affixed on the house of the concerned person under sub-section (8) shall also be submitted to the concerned ward office of the local level, and the receipt thereof shall be kept in the case file.

(10) Upon receipt of such warrant under sub-section (9), the concerned ward office of the local level shall inform the concerned person thereof and also affix it on its notice board.

(11) Notwithstanding anything contained elsewhere in this section, if the person against whom an arrest warrant has been issued appears voluntarily in court before being arrested, the matter of whether he/she should be arrested and detained shall be heard according to law, and the previously issued arrest warrant in his/her name shall be cancelled and the concerned officer shall be informed accordingly.

(12) If the court becomes aware, through a petition by a party or any other means, that the person against whom an arrest warrant has been issued has gone to reside in another district other than his/her address, the court may also send the arrest warrant to the district where he/she resides.

(13) If an accused fails to appear within the period of the arrest warrant issued under this Chapter and remains absconding, or if the exact residence of the accused cannot be ascertained, or if the place where the accused resides is not located, the court may, by giving a description of such accused, publish a notice in a national daily newspaper owned by amended by the Nepal Acts Amending Relating to the Civil Code, 2075.the Government of Nepal and may affix it on the notice board of the concerned court.

(14) After the notice is published under sub-section (13), the accused shall be deemed to have been duly notified, and any police office or employee may arrest and produce him/her at any time.

(15) Amended by the Nepal Acts Amending Relating to the Civil Code, 2075.After the notice is published under sub-section (13), the court may, at any time, order the attachment of the property of the person to be arrested under the arrest warrant.

(16) Where an order for attachment of property is made under sub-section (15), information thereof shall be given to the concerned land revenue office or other body or institution, and a notice thereof shall be affixed on the notice board of the court.

(17) Upon receiving a written order from the court to attach property under sub-section (16), the concerned land revenue office or body or institution shall immediately attach such property and give information thereof to the court that ordered the attachment.

(18) Where an order for attachment of property is made by the court under sub-section (15), notwithstanding anything contained in any other law, such property shall be deemed to have been attached from the date of such order.

(19) After the person to be arrested under this Chapter appears in court, regardless of the stage the case proceedings have reached, the court shall order the concerned land revenue office or other body or institution to immediately release the property of such person attached under this section.

59. Procedure for issuing summons: Amended by the Nepal Acts Amending Relating to the Civil Code, 2075.(1) When the court issues a summons in the name of the accused or defendant to appear in court under this Act, it shall specify a period of twenty-one days, excluding travel time. Amended by the Nepal Acts Amending Relating to the Civil Code, 2075.(2) When issuing a summons in the name of the accused or defendant under sub-section (1), for cases other than those involving offenses listed in Schedule-4, the summons shall be issued in the format according to Schedule-26, and for cases involving offenses listed in Schedule-4, in the format according to Schedule-27. Amended by the Nepal Acts Amending Relating to the Civil Code, 2075.(3) If a petition is filed stating the reason for inability to appear within the period under sub-section (1) and requesting an extension of the summons period, and if such reason appears reasonable, the court may order an extension of the summons period for once, up to a maximum of fifteen days. Removed by the Nepal Acts Amending Relating to the Civil Code, 2075.(4)

(5) In respect of an amended by the Nepal Acts Amending Relating to the Civil Code, 2075.accused or defendant who fails to appear within the period specified in the summons duly served under this section, if the court deems that he/she should be arrested and produced, it may issue an arrest warrant in accordance with the proviso to sub-section (3) of section 57. Provided that, if the accused files a petition stating that he/she could not appear within the specified period due to circumstances beyond his/her control, and if the court finds the contents of the petition reasonable, it may order an extension of the period for up to a maximum of fifteen days, excluding travel time, from the date the circumstances beyond control ceased.

Explanation: For the purposes of this Act, "period during which circumstances beyond control persisted" refers to the following periods:

- (a) If any person required to appear in court has died and, according to tradition, the person himself/herself is required to observe mourning or amended by the Nepal Acts Amending Relating to the Civil Code, 2075.mourning equivalent to Kriya, seven days excluding travel time from the date of completion of fifteen days from the death of such person,
- (b) If the person required to appear in court is a woman who has given birth, sixty days excluding travel time from the date of childbirth,
- (c) If roads are blocked by floods, landslides or snow, or if a curfew is declared, or if public transport is not operating for any other reason, fifteen days excluding travel time from the date the road opens or public transport resumes,
- (d) If a disaster such as an earthquake or volcanic eruption occurs within the period for appearing in court, ten days excluding travel time from the date of such occurrence,
- (e) If the person required to appear in court is abducted or held hostage by someone, fifteen days excluding travel time from the date of release from such abduction or hostage,
- (f) If the person required to appear in court is unconscious or unable to move due to an accident, or is unable to move due to a debilitating illness and is admitted to a government-approved hospital for treatment, the period until discharge from the hospital, not exceeding fifteen days in the case of a party in a case under Schedule-4, and not exceeding three months in the case of a party in other cases.

(6) In the situations under clauses (a) and (e) of sub-section (5), the concerned person shall, as far as possible, immediately inform the court thereof. Added by the Nepal Acts Amending Relating to the Civil Code, 2075.(7) A petition filed under sub-section (5) shall be accompanied by such evidence as may be necessary to substantiate the occurrence of the circumstances beyond control. 60. Summons may be issued in the name of a witness: When the court issues a summons in the name of a witness under this Act, it shall be issued in the format according to Schedule-28, mentioning the necessary details. 61.

Service of summons: (1) When sending a summons for service, three copies of the summons shall be given and it shall be sent for service through a police employee, an employee of the court, or any other government office designated by the court. (2) A summons issued under this Act shall, as far as possible, be delivered to the person in whose name it is issued. (3) When going to serve the summons under sub-section (2), if the concerned person is not found, or if found but refuses to accept it, it may be delivered to any adult member of his/her household who has attained at least eighteen years of age. (4) If the concerned person or a household member under sub-section (3) is not found, or if found but the person or the household member also refuses to accept it, then in the presence of one member of the concerned ward committee of the local level and at least two local persons, the server shall affix one copy on the door of his/her house after obtaining signatures of himself/herself and such persons, and shall deposit one copy at the concerned amended by the Nepal Acts Amending Relating to the Civil Code, 2075.ward office of the concerned local level, and submit one copy of the served summons to the court. (5) The notice under the summons received under sub-section (4) shall be affixed on the notice board of the concerned ward office of the local level. (6) If at least one member of the concerned ward committee of the local level and at least two local persons certify that the person for whom the summons was issued under sub-section (5) does not reside at the address mentioned in the summons, then, if the address where he/she resides can be ascertained, it shall be stated; if not, the summons shall be returned to the court stating that fact. (7) Where a summons is returned under sub-section (6), the court shall, after also ascertaining the plaintiff party if the address is not clear, issue

another summons specifying the address as necessary. (8) If a summons is to be served in the name of an office bearer or employee of the Government of Nepal or any organized institution, the summons may be served at the office where such office bearer or employee is currently posted. (9) Where a summons is sent for service under sub-section (8), the head of such office or institution who is immediately available shall deliver one copy of the summons to the concerned office bearer or employee, and shall send another copy back to the court, mentioning the date and details of service, and, if possible, obtaining the signature of the concerned office bearer or employee. (10) If the summons cannot be served under sub-section (9), it shall be affixed on the notice board of the concerned office or institution.

A report of such affixation shall be submitted to the concerned court.

(11) When serving a summons under sub-section (8), if such office bearer or employee is on leave, the concerned office or institution shall, as soon as possible, notify such employee that the summons has been served.

(12) If a summons is to be served in the name of an organized institution, one copy of such summons shall be delivered to the principal or local office of such institution, and a receipt thereof shall be submitted to the court.

(13) Where a summons is served at the local office under sub-section (12), it shall be deemed to have been served at the principal office of such institution.

(14) When serving a summons under this section, the serving employee shall submit a report to the court stating the date and details of service.

(15) If any court needs to serve a summons on a person residing in an area outside its jurisdiction, it shall send the summons to the court of that area for service through that court, and such court shall also serve the summons under this Chapter and send back one copy thereof to the court that issued the summons.

(16) When serving a summons under this section, the notice sent to the accused under sub-section (7) of section 57 shall also be delivered along with the summons or, if appropriate, affixed on the door of the house.

62. Summons may be served through print or electronic media: (1) If a summons cannot be served under section 61, the court may cause service by publishing the substance of such summons in any national daily newspaper owned by the Government of Nepal or by broadcasting it through electronic media.

(2) Where a summons is published or broadcast under sub-section (1), such summons shall be deemed to have been duly served. 63.

Service of arrest warrant: (1) When sending an arrest warrant for service, three copies of the arrest warrant shall be sent, and the person in whose name it is issued shall, as far as possible, be amended by the Nepal Acts Amending Relating to the Civil Code, 2075. delivered the warrant and arrested and brought. (2) The arrest warrant issued under sub-section (1) shall be accepted by the person in whose name it is issued. (3) When going to deliver the arrest warrant under sub-section (1), if the concerned person is not found, it may be delivered to any adult member of his/her household who has attained at least eighteen years of age. (4) If the concerned person or a household member under sub-section (3) is not found, or if found but the person or the household member also refuses to accept it, then, if a member of the concerned ward committee of the local level is available, in his/her presence, and if he/she is also not available, in the presence of at least two local persons as witnesses, the server shall affix one copy on the door of his/her house after obtaining signatures of himself/herself and such persons, and shall deposit one copy at the concerned ward office of

the local level, and submit one copy of the served arrest warrant to the court. (5) The notice under the arrest warrant received under sub-section (4) shall be affixed on the notice board of the concerned amended by the Nepal Acts Amending Relating to the Civil Code, 2075. ward office of the local level. (6) If at least two persons residing at the place specified in the arrest warrant issued under this Chapter and at least one member of the concerned ward committee of the local level certify that the person to be arrested under the warrant does not reside at the specified address, then, if the place where he/she resides can be ascertained, it shall be stated; if not, the arrest warrant shall be returned to the court stating that fact. (7) Where an arrest warrant is returned under sub-section (6), the court shall, after providing an opportunity to the plaintiff party to clarify the address if not known, issue another arrest warrant as necessary. (8) When serving an arrest warrant under this section, the serving employee shall submit a report to the court stating the date and details of service. (9) If any court needs to serve an arrest warrant on a person residing in an area outside its jurisdiction, it shall send the arrest warrant to the court of that area for service through that court, and such court shall also serve the arrest warrant under this Chapter and send back one copy thereof to the court that issued the arrest warrant. (10) If the employee submitting the report under sub-section (8), while following the procedure under this section, reports that the arrest warrant could not be served due to a reason, then, notwithstanding anything contained elsewhere in this section, the arrest warrant issued in the name of the concerned person may be served by publishing it in a national daily newspaper owned by the Government of Nepal, and such service shall be deemed to be due service. (11) When serving an arrest warrant, the notice sent to the accused under sub-section (7) of section 57 shall also be delivered along with the arrest warrant or, as appropriate, affixed on the door of his/her house.

64. Arrest warrant or summons may be issued or served in the name of an accused staying abroad: (1) Notwithstanding anything contained elsewhere in this Chapter, if an accused in a case pending in any court resides abroad, when it is necessary to issue an arrest warrant or serve a summons in the name of such person, the arrest warrant may be issued or summons served in the name of such person in accordance with the prevailing law relating to mutual legal assistance.

(2) If information is received by the Government of Nepal that an arrest warrant or summons issued under sub-section (1) has been served, the court concerned shall be informed thereof.

(3) If an arrest warrant or summons issued under sub-section (1) cannot be served, such arrest warrant or summons may be served by publishing it in a national daily newspaper owned by the Government of Nepal or by broadcasting it through electronic media.

(4) Where an arrest warrant is issued or a summons is served under sub-section (1), it shall be deemed to have been issued or served under this Act.

(5) If an arrest warrant is issued under sub-section (1) and the police of the concerned country arrests the accused and hands him/her over to any police office, he/she shall be produced before the concerned court as soon as possible, within a maximum of twenty-four hours excluding travel time.

(6) Notwithstanding anything contained elsewhere in this section, if an arrest warrant cannot be issued or a summons cannot be served in the name of a person staying abroad under this section, the case proceedings and adjudication shall not be deemed to be hindered solely for that reason. 65.

Special provisions regarding absconding persons: (1) In the case of a person who, after an arrest warrant is issued under this Chapter, cannot be found and arrested, or remains absconding and does not appear in court, from the day following the expiry of amended by the Nepal Acts Amending Relating to the Civil Code,

2075.thirty-five days from the issuance of the arrest warrant until such person appears in court, the following matters shall be as follows: (a) If such person is a sitting office bearer or employee of the Government of Nepal, Provincial Government, local level, constitutional body or any government office, organized institution wholly or partially owned or controlled by the Government of Nepal, Provincial Government or local level, educational or academic institution or any other public institution, he/she shall be deemed to be automatically suspended from his/her post, (b) If the property of such person is not already attached under sub-section (15) of section 58, the immovable property in his/her name shall be attached under that same sub-section, (c) If any industry, trade or business in the name of such person or under his/her sole ownership, or any firm, industry, license, etc., relating to income tax registration requires renewal, the renewal process shall automatically remain suspended, (d) Trading of securities in the name of such person shall be automatically frozen, (e) Facilities such as salary, allowances, gratuity, pension that such person is entitled to receive by law shall be deemed to be automatically frozen, (f) Royalties, benefits or facilities that such person receives from intellectual property such as patents, designs, trademarks, copyright under prevailing law shall be deemed to be automatically frozen, (g) If it is known that there is a bank account in the name of such person, and a request is made to freeze the operation of such account, the bank account shall be frozen, (h) If a request is made not to provide citizenship certificate, passport or land ownership certificate to such person under prevailing law, the concerned body shall not provide citizenship certificate, passport or land ownership certificate, (i) If information is received that such person is staying outside Nepal, and if there is a situation where extradition can be made under a treaty to which the Government of Nepal is a party or under prevailing law, proceedings relating thereto shall be initiated; if not, depending on the seriousness of the offense, a request may be made through diplomatic channels to the concerned country or relevant international organization to arrest him/her. (2) To make the provision under sub-section (1) effective, the court shall give notice thereof to the concerned authority or body. 66.

Summons may be served in court itself: (1) Notwithstanding anything contained elsewhere in this Chapter, a amended by the Nepal Acts Amending Relating to the Civil Code, 2075.summons, arrest warrant, notice or order issued by any court in the name of the following persons may be served in court itself by delivering it to such person under the following circumstances: (a) If the person is an employee or officer of the concerned court, when he/she is present in court, (b) If the person is a party on bail in another case in the concerned court, when he/she appears on such bail date, (c) If the person is a representative representing any party in a case pending in the concerned court, when he/she appears in that capacity, (d) If the person is a legal practitioner appearing in the concerned court in the course of legal practice, (e) If the person is a witness present in the concerned court, when he/she appears in that capacity. (2) If a amended by the Nepal Acts Amending Relating to the Civil Code, 2075.summons, arrest warrant, notice or order issued by a court in the name of a person under sub-section (1) is brought for delivery at the time such person is present in the concerned court, he/she shall accept it. (3) If, when brought for delivery under sub-section (2), such person refuses to accept the amended by the Nepal Acts Amending Relating to the Civil Code, 2075.summons, arrest warrant, notice or order, the server shall immediately report such fact to the concerned court. (4) If the contents of the report under sub-section (3) appear reasonable, the concerned court shall order the prohibition of such person from representing as a representative, taking bail, practicing law or testifying as a witness until such person accepts the amended by the Nepal Acts Amending Relating to the Civil Code, 2075.summons, arrest warrant, notice or order issued in his/her name. Chapter-7 Provisions Relating to Custody, Bail and Surety 67.

To keep the accused in custody: (1) If, from the evidence immediately available, an accused charged with any of the following offenses appears to be guilty, or if there is any reasonable basis to believe that he/she is

guilty, the court shall, stating reasons, keep such accused in custody for trial: (a) An offense punishable with life imprisonment, (b) An offense under Schedule-1 or Schedule-2 punishable with more than three years of imprisonment, or (c) An offense of attempt, abetment or criminal conspiracy to commit an offense mentioned in clause (a) or (b), or an offense of being an accomplice in such offense. (2) Notwithstanding anything contained in sub-section (1), the court may keep an accused liable to imprisonment by law in custody for trial under the following circumstances: Amended by the Nepal Acts Amending Relating to the Civil Code, 2075.(a) If the accused has confessed the offense in court and, upon evaluation of the facts and evidence of the case, it appears reasonable to keep in custody, (b) If an accused charged with an offense punishable with one year or more of imprisonment does not have permanent residence in Nepal, and if not kept in custody, he/she is likely to abscond and there is no possibility of subsequent arrest, (c) If an accused, after an arrest warrant was issued under sub-section (1) of section 58, fails to appear within the period and is subsequently arrested, and cannot show any satisfactory reason for not appearing in court with the complaint, (d) If, within a period of three years before the charge was made, the accused has been convicted of any other offense. (3) Notwithstanding anything contained in sub-section (1) or (2), except in offenses punishable with more than ten years of imprisonment, if the accused is a child, or is disabled due to physical or mental illness, or is a pregnant woman beyond seven months, or an elderly person above seventy-five years of age, the court may release such accused on amended by the Nepal Acts Amending Relating to the Civil Code, 2075.bail or surety on a specified date. 68. To take bail or surety or bank guarantee from the accused: (1) Except in the situation under section 67, if there is a reasonable basis to prove the charge against an accused, the court may release him/her on amended by the Nepal Acts Amending Relating to the Civil Code, 2075.bail, surety or bank guarantee on a specified date.

Provided that a bank guarantee must be unconditional and renewable for the period specified by the court.

(2) An accused who does not provide bail, surety or bank guarantee under sub-section (1) shall be kept in custody by the court. 69. To be released on bail: Except in the situations under section 67 and section 68, when an accused appears in court, he/she shall be released on bail and the case shall proceed for trial. 70. Further bail, surety or bank guarantee may be demanded: (1) If the amount of bail, surety or bank guarantee taken from an accused subsequently appears insufficient, the court may demand further bail, surety or bank guarantee from him/her.

(2) If the further bail, surety or bank guarantee under sub-section (1) cannot be provided, the court may keep such accused in custody. 71. May be kept in custody or on bail at any stage of proceedings: (1) Even if the case proceedings have reached any stage, the court may, as evidence is heard, keep the accused in custody under section 67 or demand bail, surety or bank guarantee from him/her under section 68, and the court shall not be deemed to be prevented from subsequently keeping the accused in custody or demanding bail, surety or bank guarantee merely because the accused was not initially kept in custody for trial or bail, surety or bank guarantee was not taken.

(2) If any reasonable basis that can prove that an accused in custody under section 67 or section 68 is not guilty comes to light, even if the case proceedings have reached any stage, the court may, after hearing on such matter, order the release of the accused from custody. 72. Basis for fixing the amount of bail, surety or bank guarantee: (1) When fixing the amount of bail, surety or bank guarantee to be taken under this Chapter, the following matters shall be considered and fixed in a reasonable manner:

- (a) The nature and gravity of the offense,
- (b) The financial condition and family situation of the accused or offender,

- (c) The age and physical condition of the accused or offender,
- (d) Whether he/she has been previously convicted and sentenced for any offense,
- (e) Whether he/she has committed various offenses in a single incident,
- (f) The punishment imposed or likely to be imposed on him/her and the compensation he/she has to bear,
- (g) The consequence created by the offense,
- (h) Whether he/she has

86.

Consequence if a party to the case is absent on the appointed date: (1) Amended by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code. If any party to the case, being the plaintiff, is not present on the appointed date, the court shall, calculating the period for which the case is to be retained as per the proviso to sub-section (1) of section 85, fix another date.

(2) If, on another date fixed pursuant to sub-section (1) or prior to that date, the party to the case appears and, submitting an application showing a reasonable cause for not being able to appear on the previous date due to circumstances beyond control, Deleted by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code. the court shall retain the date for such party and decide the case according to law.

(3) Even if the party to the case does not appear in court on another date fixed pursuant to sub-section (1), the court shall decide the case by rendering judgment to the extent that, if it appears or is determined from the evidence available in the case file that the defendant has accepted the plaintiff's claim wholly or partially, judgment shall be given to that extent, and if the claim is not accepted or is not determined to have been accepted, it shall be dismissed to that extent. Provided that, in a situation where the plaintiff is present and the defendant is not present, the court shall examine the evidence of the defendant that needs to be taken and deliver judgment in accordance with the finding.

(4) After a statement or reply has been given in court under this Act, even if the accused or defendant is not present in court on the appointed date, the court may conduct proceedings and decide the case according to law. 87. Issue of arrest warrant and attachment of property: (1) Notwithstanding anything contained in section 86, if any accused has been absent on a previously appointed date and the court considers it necessary to arrest such person and produce him/her before the court, the court may issue an arrest warrant under section 58 to arrest such accused and may also order the attachment of the property of such accused.

(2) Where an order has been given under sub-section (1), the concerned police personnel shall arrest the accused and the concerned Land Revenue Office or other body or institution shall attach the property of the accused in accordance with such order. 88.

Chapter-9

Provisions relating to Representatives

89. Appointment of representative: (1) If any party to a case is unable to appear in person to file a complaint, appeal or reply, present evidence, recover the decretal amount, compensation or any other thing as per judgment, or carry out any other necessary work related to the case, such party may appoint a representative on his/her behalf, stating the reason for such inability.

(2) Notwithstanding anything contained in sub-section (1), a representative cannot be appointed in the following circumstances: -

- (a) in the case of an offence under Schedule-1 and Schedule-2,

- (b) if the accused is required to appear in court himself/herself and give a statement under this Act,
- (c) if the person is required to be detained for trial under this Act or is detained because he/she cannot provide the requested bail or surety,
- (d) if, even though there is a representative or the condition to appoint one exists, the court orders the party to the case to appear in court in person for some reasonable cause,
- (e) except in the case of a person who is in detention or has already provided bail or surety, if a foreign citizen or a person without citizenship address does not deposit as surety an amount equivalent to the punishment that may be imposed on him/her by law upon the decision of the case, or does not provide surety therefor,
- (f) if a penalty, fine, court fee or appellate fee imposed by court order remains unpaid, or
- (g) if the court has ordered, stating a reasonable cause, that a representative cannot be kept.

(3) If anyone gives a representative contrary to sub-section (2), the court shall cancel such representative.

(4) A person with the following qualifications may be a representative: -

- (a) capable of making a contract according to prevailing law,
- (b) not convicted of forgery, fraud, corruption, or other criminal offences involving moral turpitude,

Provided that nothing contained in this clause shall be deemed to prevent any party to a case from appointing a close relative as a representative.

(c) no government dues, any fees payable to the court for execution of judgment, court fees, or any penalty or fine remaining unpaid as per judgment.

(5) When appointing a representative under sub-section (1), a power of attorney must be executed in the format according to Schedule-36, mentioning the following matters: -

- (a) subject matter of the case,
- (b) full name, surname, address including ward, age, citizenship number and district of issue of the person becoming representative,
- (c) that the person becoming representative has no disqualification as per sub-section (4),
- (d) that no penalty, fine, court fee or appellate fee remains unpaid as per court order,
- (e) the work for which authority is given.

(6) When preparing the power of attorney deed, at least two witnesses must be present.

(7) The party appointing the representative and the witnesses must sign or affix their thumb impression on the power of attorney deed.

90. One person may be representative of more than one person simultaneously: One person may be representative of more than one person simultaneously. Provided that a person who is a representative of one party in a case cannot be the representative of his/her opponent in the same case or in a case related to the same case. 91. A party may be a representative: Where there is more than one plaintiff or defendant in a case, any one of such persons may be appointed as a representative. Provided that a representative of one

party cannot be the representative of the opponent in the same case. 92. Rights and duties of representative: (1) The representative may perform all acts on behalf of the person appointing him/her as specified in the power of attorney.

(2) If the court orders that the person appointing the representative is to be produced, the representative must produce such person before the court.

(3) If the relevant person is not produced under sub-section (2), the court may cancel the representative of such person. 93. Cancellation of representative: (1) If the party appointing the representative so desires, he/she may at any time cancel the power of attorney given by him/her and take over the case himself/herself or appoint another person as representative.

(2) If the power of attorney is cancelled under sub-section (1) and the relevant party takes over his/her own case, such party shall inform the court thereof by submitting an application. 94. Representative not to be arrested: The representative shall not be arrested in relation to the punishment imposed on the party or the liability to be borne by the party upon the decision of the case. 95. Special provision for granting permission to appoint representative: (1) Notwithstanding anything contained in clause (a) of sub-section (2) of section 89, a person in the following circumstances may submit an application to the court for permission to appoint a representative, stating the same particulars: -

(a) if an accused charged with an offence punishable by imprisonment of three years or less remains in detention and circumstances beyond control arise making it impossible to appear on the appointed date,

(b) if a woman charged with an offence punishable by imprisonment of up to five years has recently given birth or is unable to appear in court on the appointed date due to any other reason.

(2) If an application is submitted under sub-section (1) and the contents of such application appear reasonable, the court may, subject to the other provisions of this Chapter, stating reasons, grant permission to keep a representative, with or without specifying a period. Chapter-10

96.

Transfer of case: (1) The Supreme Court may, in the circumstances under sub-section (1) of Article 134 of the Constitution of Nepal, call for a case pending in any High Court to the Supreme Court and conduct proceedings, hearing and decide it. (2) The Supreme Court may, in the circumstances under sub-section (2) of Article 134 of the Constitution of Nepal, order that a case pending in one High Court be transferred to another High Court and that the proceedings, hearing and decision of such case be conducted there. (3) The High Court may, in the circumstances under sub-section (2) of Article 145 of the Constitution of Nepal, order that a case pending in one District Court under its jurisdiction be transferred to another District Court under its jurisdiction for hearing. (4) The decision on whether the condition for transferring a case under sub-section (2) or (3) exists or not shall be made based on an application of the concerned party to the case or information obtained from the court's inspection or report. (5) If there is any reason why a judge of a court cannot hear a case filed in that court under this Act, the concerned court shall send a report to the appellate court stating such matter, and upon receiving such report, the appellate court may, considering the convenience of the parties, transfer such case to another court of the same level within its territorial jurisdiction. (6) Where an order is made under sub-section (2), such court shall conduct proceedings, hearing or decide such case in accordance with the order of the Supreme Court. (7) Even if the case is decided by another court under sub-section (2), (3) or (5), an appeal against the judgment rendered by such court shall lie to the appellate court of the court where the plaint was originally filed. 97.

Stay of case: (1) If any party to different cases filed in different courts submits an application to the concerned court stating a reasonable cause that one case cannot be decided without the decision of another, or that the decision of one case will substantially affect the decision of the other, or if the court itself realizes such matter in the course of proceedings, the court may, stating reasons, order that such case be stayed. (2) Where a court orders the stay of any case filed in that court under sub-section (1), it shall inform the parties in writing and suspend all proceedings of the case, and shall also notify the concerned court where the other case is filed. (3) After receiving the notice under sub-section (2), the concerned court shall, within thirty days of deciding the relevant case filed in that court, notify the court where the case is stayed accordingly, attaching a copy of the judgment. Upon receiving such notice, the court where the case is stayed shall fix a date and, after giving written notice to the parties to the case, revive the stay and conduct proceedings and decide the case. Added by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code.(3a) Notwithstanding anything contained elsewhere in this section, if information is received that the case pending in another court has been decided, or if no reason is seen to keep the case stayed, the court shall immediately revive the stayed case and conduct proceedings. (4) Notwithstanding anything contained in sub-section (3), if these parties are also parties to the case under sub-section (3), the court deciding the case shall order them to appear before the court where the case is stayed within fifteen days. (5) If there is a difference of opinion between two different courts regarding which case among those filed in two different courts should be stayed, both courts shall send their reports to the appellate court. (6) In the situation under sub-section (5), the parties to the case may also submit an application to the concerned appellate court. (7) Where a report is sent under sub-section (5) or an application is filed by a party under sub-section (6), the Amended by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code.appellate court shall make an appropriate order within one month in relation to such case, and the concerned court shall conduct proceedings of the case in accordance with such order.

Amended by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code.(8) If the appellate courts of the two courts with differing opinions under sub-section (5) are different and not the same, a report on that matter shall be submitted to the Supreme Court. On matters submitted thus, the Supreme Court shall make an appropriate order within three months, and the concerned court shall conduct proceedings of the case in accordance with such order.

(9) Before giving an order to stay or cause to stay a case under this section, the court may, if it deems appropriate, give notice to the concerned party and provide a hearing. 98. Stay of case due to non-appearance of accused: (1) If the accused, against whom an arrest warrant has been issued under section 57, does not appear before the court within thirty-five days from the date of issuance of the arrest warrant, or cannot be produced, the court shall stay the case in respect of such accused and, after examining the evidence, decide the case in respect of other accused involved in that case. Provided that,

(a) the case shall not be stayed in respect of an accused or defendant who remains absent after having given a statement or reply in court, and the court shall examine the evidence presented by the plaintiff and defendant and such other evidence as the court deems reasonable and decide the case,

(b) in a case punishable by imprisonment of three years or less, judgment shall be rendered as determined even in respect of accused or defendants who have not appeared in court.

(2) If a case is to be stayed under sub-section (1), the court shall Amended by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code.suspend the proceedings of the case in respect of the defendants for whom the case is stayed.

(3) Where the case is stayed under sub-section (1), if the accused appears or is produced before the court before the decision of the case, the court shall revive the stay and, after giving notice of such matter to the complainant, conduct proceedings and decide the case.

(4) If the accused does not appear or is not produced before the court within a period of three years from the date of stay of the case under sub-section (1), the court shall revive the stayed case in respect of such accused and conduct proceedings and decide it.

Amended by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code.(5) If the accused does not appear in court even within the period for which the case can remain stayed under sub-section (4), upon the decision of the case, out of the amount obtained from the auction sale according to law of the property of such accused attached under sub-section (15) of section 58, if he/she is found guilty, the amount due as penalty, fine, compensation or damages imposed on him/her by the judgment shall be recovered, and the remaining amount shall be returned to him/her when he/she comes to claim it back.

(6) If the accused appears or is produced in court before the decision of the case and presents any evidence that makes the court believe that he/she was unable to appear because he/she had no knowledge of the case being filed against him/her, the court shall order the release of the attached property to him/her after deducting or recovering the following expenses: -

(a) if the property has not been sold, the expenses incurred in attaching such property,

(b) expenses incurred in publishing a public notice in his/her name regarding appearance in court or any matter related to the proceedings of the case.

(7) Notwithstanding anything contained elsewhere in this section, if a case filed in one court is stayed and a report or information is received that the accused has appeared as plaintiff or defendant in any other case filed in the same court or any other court, such case shall not be deemed to be stayed, and the court may order such accused to appear in court to proceed with such case.

(8) Even if the accused appears pursuant to an order under sub-section (7), the case may be revived and proceedings and decision conducted. Chapter-11

Provisions relating to Examination of Evidence

99.

Evidence to be presented: (1) The plaintiff in the plaint, the accused in his/her statement, and the defendant in the reply shall disclose all their witnesses, documents and material evidence. (2) Documents or material evidence that, by their nature, should be in possession of the party or that the party can obtain, shall be presented by the plaintiff with the plaint, by the defendant with the reply, and by the accused at the time of making his/her statement. (3) Notwithstanding anything contained in sub-section (1) or (2), the following matters shall be as follows: - (a) if the accused, while making his/her statement, or the defendant, while submitting the reply, requests for another date to present any document or material evidence that cannot be presented immediately, the court may fix another date of up to one month, (b) in the case of examining evidence relating to forgery or fraud under sub-section (3) of section 104, it shall be in accordance with that section, (c) if, during the trial of the case, it becomes necessary to present additional evidence to support or refute any new fact, the concerned party may present additional evidence with the permission of the court. (4) When any party to the case presents any documentary evidence under sub-section (2), he/she shall present copies of such document exceeding the number of opponents by one. Provided that in cases of offences

under Schedule-1 and Schedule-2, such copies of the document need not be presented. Explanation: For the purposes of this section, "copy" shall mean a photocopy or any other reproduction of the document. 100. Original document to be returned: (1) Where any document is presented in court under sub-section (2) of section 99, the court shall cause its employee to verify whether the copy presented under sub-section (4) of that section corresponds to the original document or not. (2) After the employee conducting the verification under sub-section (1) completes the verification, he/she shall write on each page of such copy that the copy is true as per the original, affix a dated signature, have the party presenting such document also sign or affix thumb impression, and certify it by affixing the court seal. (3) After certification under sub-section (2), such employee shall affix the court seal on the back of such original document, affix a dated signature, and return such document to the party presenting it. (4) If the court so desires, it may order the concerned party to re-submit the original document returned under sub-section (3) as necessary. 101.

Party to produce witnesses: (1) The witness of a case filed in court shall be produced by the concerned party on the day fixed by the court. (2) Notwithstanding anything contained in sub-section (1), in any particular case, if the defendants are present at the time of filing such case, the plaintiff, defendant or both parties may present their respective witness evidence before the court at the time of filing the case itself. (3) When witnesses are produced under sub-section (1) or (2), witnesses for the government side in cases of offences under Schedule-1 and Schedule-2 shall be produced by the concerned investigating officer or his/her office through the Government Attorney's Office. (4) A witness who does not appear on the date fixed for examining witnesses under sub-section (1) shall be warned. Provided that if a party submits an application stating that the witness could not appear due to circumstances beyond control, the court may fix another date to examine such witness. (5) In a case relating to any offence mentioned in Schedule-1 or Schedule-2 of this Act, if the process of witness examination has not started because all defendants are not present, any party may request to have his/her witnesses produced immediately and their deposition taken, stating that they cannot be produced later. (6) If a request is made under sub-section (5) and the reason is reasonable, the court may, stating the reason therefor, have the deposition of such witness taken immediately. (7) In the deposition made by the witness under sub-section (6), the parties to the case who are present shall be allowed to cross-examine, and if such a situation does not exist, the party appearing later may refute the contents of such deposition to that extent. 102. Expert Deleted by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code. may be examined: In any case of a heinous or serious offence where the Government of Nepal is the plaintiff, if the expert giving expert opinion has died, or is residing abroad for a long time and unable to come to Nepal, or it is impossible to examine him/her due to other reasons, expert opinion may be obtained from an expert of the same subject matter equal to or higher than such expert Deleted by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code.. 103. Cross-examination of co-accused: When examining evidence under this Chapter, if any accused implicates any co-accused, such co-accused may cross-examine to the extent of the matters so implicated. Amended by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code.104.

Statement to be taken on genuine or forged document: (1) On the date fixed for examining evidence, the court shall show and read the original of the evidence document presented by the plaintiff to the defendant, and the evidence document presented by the defendant to the plaintiff. If such party classifies such document as genuine, forged or fraudulent, the court shall record a statement to that effect. (2) If, while showing or reading under sub-section (1), any party cannot immediately distinguish whether it is genuine, forged or fraudulent and requests time, the court shall grant a period of up to three days. (3) If a document bearing the signature or thumb impression of persons other than the parties to the case is presented, and any party to the case requests time because it cannot immediately distinguish and classify it as genuine, forged or fraudulent,

a period of up to fifteen days may be given to give a statement on genuineness, forgery or fraud, along with evidence. (4) Within the period given under sub-section (3), the person giving the statement shall classify it as genuine, forged or fraudulent, and the court shall record a statement accordingly. (5) When recording a statement under sub-section (4), if any party states that such document is forged or fraudulent, the court shall, if all parties to the case are present on that day, record their statements on the same day, and if any party is not present, record the statement of such party on the day he/she subsequently appears. (6) In a case where a representative or legal practitioner is on date, if it appears necessary to summon the concerned party himself/herself, the court shall summon such party and record his/her statement. (7) If, while showing or reading the evidence document under this section, the concerned party is unable to distinguish whether it is genuine, forged or fraudulent, the court may send such evidence document to a concerned expert for examination. 105.

Document alleged to be forged or fraudulent to be kept with case file: When a document presented by one party under sub-section (1) of section 104 is shown to the other party and that party classifies it as a forged or fraudulent document, both parties shall be made to sign or affix thumb impression on the back of such document, and the concerned employee shall affix his/her signature and the court seal, seal it and keep it safely with the case file. If there is no space for signing or affixing thumb impression, a separate paper shall be attached and signatures or thumb impressions affixed on the joint, and a report shall be prepared and kept. 106. Witness to be examined on fixed day: (1) On the date fixed for examining witnesses, the court shall take the deposition of all witnesses present. Only if taking the deposition of all witnesses present on that day is not possible due to lack of time, the deposition shall be taken on the next day the court opens. (2) Before giving deposition, the witness who has appeared for deposition under sub-section (1) shall make a declaration that he/she will only state the truth, and take an oath in the format according to Schedule-37, audibly, and such oath shall be attached to the relevant case file. (3) The deposition made by the witness shall be recorded in the format according to Schedule-38. 107. Examination of witness by commission: (1) Notwithstanding anything contained elsewhere in this Chapter, if a witness who resides or stays outside the territorial jurisdiction of the court where the case is filed, or who cannot appear in court for any reason but whose examination is necessary, needs to be examined by commission considering the gravity of the case, the court shall give notice thereof to the parties to the case. (2) If any party to the case so desires, he/she may submit an application to the court stating reasons that the questions he/she wishes to ask the witness be included in the commission under sub-section (1). (3) If any application under sub-section (2) is submitted and the court deems it reasonable to include such questions in the commission, the court shall order that such questions be included in the commission, and the questions for the commission shall be prepared accordingly. (4) The format of the commission shall be as mentioned in Schedule-39. (5) When examining a witness by commission under sub-section (1), if any party to the case so desires, he/she may appear at the court to which the commission is sent and conduct examination-in-chief, cross-examination or re-examination of the witness in accordance with the prevailing law on evidence. 108.

Deposition to be taken in bench: (1) When taking the deposition of a witness under this Act, it shall be done in the bench of the judge. Provided that, when it is necessary to take the deposition of a witness who is unable to appear in court due to physical incapacity, the judge may go to the place where such witness resides or depute an authorized officer under his/her supervision to take the deposition. (2) When taking a deposition under sub-section (1), the concerned parties to the case shall be given notice of such matter and also be given the opportunity to conduct examination under sub-section (5) of section 107. 109. Examination of witness through audio-visual means (video conference): (1) If a witness to be examined under this Chapter is physically disabled or a child, or cannot be produced in court due to security reasons, the concerned party

may submit an application to the court stating such particulars to examine such witness through audio-visual means (video conference). (2) If the court orders that a witness of a particular nature be examined through audio-visual means (video conference), the witness examination shall be conducted accordingly. (3) If an application under sub-section (1) is submitted and the reason mentioned in the application appears reasonable, or if the court orders under sub-section (2), notwithstanding anything contained elsewhere in this Act, the court may examine such witness through audio-visual means (video conference). (4) When conducting audio-visual means (video conference) under sub-section (3), with the permission of the court, the concerned party to the case may be present at the venue of such conference and conduct examination, cross-examination or re-examination. (5) When examining a witness under sub-section (3), arrangements shall be made to record the statements made by such witness, and the court shall maintain a record of the audio-visual means (video conference). (6) The record of the witness examined through audio-visual means (video conference) shall be kept in the format according to Schedule-40. 110. Note may be made of witness's demeanor, facial expression, etc.: (1) While taking the deposition of any witness, the judge may make a note of matters such as what the behavior and facial expression of the witness was like, whether the witness was excited, flustered or afraid while answering questions asked to him/her, what the facial expression suggested about the truth or falsity of his/her answers, and other necessary matters as perceived by him/her. (2) The judge shall sign or affix thumb impression on the note made under sub-section (1) and attach it to the case file. (3) When evaluating the deposition of a witness as evidence, the note under sub-section (1) may be taken as a basis. 111.

Witness already examined once not to be examined again: No matter may be examined again from a witness who has already given a deposition. Provided that, if some matter that cannot be left unexamined from such witness is omitted, and the judge orders stating reasons, the witness may be summoned again and examined. 112. Summons or arrest warrant may be issued for necessary witness: (1) A party to a criminal case where the Government of Nepal is the plaintiff may, stating reasons, submit an application that a summons be issued to produce a witness who is necessary to be examined considering the gravity of the case but who did not appear on the date fixed by the court for examination of evidence under this Chapter, or to submit any document or material evidence. (2) If an application under sub-section (1) is submitted and the contents of such application appear reasonable and it appears necessary to examine such witness, the court may, granting a period of up to fifteen days, issue a summons and examine such witness. (3) Where a summons is issued under sub-section (2), such witness shall appear within the stipulated period, unless there is a reasonable cause. (4) If a witness does not appear within the period fixed under sub-section (3), the court may impose a fine of up to two thousand rupees, issue an arrest warrant, arrest him/her and take his/her deposition. (5) If a witness against whom an arrest warrant has been issued under sub-section (4) is not found or cannot be arrested, the case shall be decided based on the evidence already examined, with a sentence of imprisonment Amended by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code. for up to forty-five days to be enforced at the time such witness is arrested or found. (6) The summons or arrest warrant issued under this section shall be served in accordance with Chapter-6. 113.

Daily and travel allowance and security to be provided to witness: (1) In cases of offences under Schedule-1 or Schedule-2, for witnesses appearing in court on behalf of the Government of Nepal, the concerned police office shall provide daily and travel allowance equivalent to that received by a non-gazetted first class government employee, and for a witness appearing as an expert, equivalent to that received by a gazetted third class government employee, according to law. (2) If any government employee appears in court as a witness or expert, the office where he/she is posted shall provide him/her with the daily and travel allowance he/she is entitled to according to prevailing law. (3) The Government of Nepal shall make arrangements for

necessary security of the witness under sub-section (1). 114. Protection of witnesses or victims: (1) In any case of an offence under Schedule-1 or Schedule-2, if any person who is a witness feels that there is a threat to his/her safety either before appearing before the court or after giving deposition in court, he/she may submit an application to the court stating the reason thereof, requesting arrangements for security. (2) If a request under sub-section (1) is made, the court may order the concerned body to arrange security for such witness. (3) If the court gives an order under sub-section (2), the duty to arrange such security shall lie with that body. (4) No question may be raised in any court regarding any matter adopted pursuant to an order made by the court for witness protection under this section. (5) If a person who is a victim of a particular offence or is a witness in any case gives information to the police that due to being a witness, he/she may face undue fear, threat or terror from a party, or that his/her life or bodily safety may be adversely affected, the police Amended by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code. shall protect such witness or victim. 115. Witness evidence may be examined outside the State of Nepal: (1) If it is necessary to examine any witness or evidence residing outside the State of Nepal, or to issue a commission in relation to any case pending in any court, the witness or evidence may be examined in accordance with the prevailing law on mutual legal assistance. (2) The format of the commission to be used under sub-section (1) shall be as mentioned in Schedule-41. (3) A witness or evidence examined under sub-section (1) shall be deemed to have been examined under this Act.

Chapter-12

Provisions relating to Withdrawal of Case, Compromise and Mediation

116. Case not to be withdrawn: (1) A case once filed in court for an offence under Schedule-1 or Schedule-2 cannot be withdrawn.

(2) Notwithstanding anything contained in sub-section (1), cases other than the following may be withdrawn: -

(a) cases relating to false passport or citizenship, immigration, corruption, human trafficking and transportation, narcotic drug trafficking or trade, illegal hunting and trade of wildlife, poisoning of goods for public consumption, murder by use of poison or cruel, inhuman means or by taking control, money laundering, ancient monument conservation,

(b) cases relating to offences under Amended by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code.sections 52 and 56 of Chapter-2 of Part-2 of the Criminal Code, sections 129, 130, 131 and 134 of Chapter-6, sections 138, 139 and 141 of Chapter-7, Chapter-8, section 167 of Chapter-10, Added by the Some Nepal Acts Amending Act, 2079 relating to Criminal Offences and Criminal Procedure.section 192a of Chapter-14, section 206 of Chapter-16, Chapter-17, sub-sections (1), (2) and (3) of section 219 of Chapter-18, sections 230 and 231 of Chapter-19, and section 256 of Chapter-22,

(c) cases where the withdrawal of the case would adversely affect the property rights of any person, to the extent that consent of such person has not been obtained.

(3) The Government of Nepal shall prepare a directive with necessary standards regarding cases to be withdrawn under sub-section (2).

(4) If a case is to be withdrawn under sub-section (2), the Government of Nepal may, after consulting with the Attorney General, decide to withdraw it in accordance with the directive prepared under sub-section (3).

(5) If the Government of Nepal decides to withdraw any case under sub-section (4), an application stating the reasons for withdrawal shall be submitted to the concerned court through the Attorney General or a

Government Attorney authorized by him/her.

(6) If an application under sub-section (5) is received, the court shall provide a hearing before ordering the withdrawal of the case.

(7) After the hearing under sub-section (6), if it appears reasonable to order the withdrawal of the case, the concerned court may, stating reasons, order that the case may be withdrawn.

(8) Notwithstanding anything contained elsewhere in this section, a case pending on appeal, for scrutiny or review, or in a situation of retrial, cannot be withdrawn. 116a.

Withdrawal of claim: Added by the Some Nepal Acts Amending Act, 2075 relating to the Muluki Civil Code.(1) In any case other than a case where the Government of Nepal is the plaintiff, a party to the case may, at any time before the decision of the case, submit an application to the court to withdraw the claim made in the plaint, appeal or petition by relinquishing it, or to withdraw such plaint, appeal or petition stating that he/she cannot prove the claim or that the purpose of the claim has ended. (2) Upon receipt of an application under sub-section (1) (?) If an accused who has confessed to the alleged offence claims that he should be entitled to a remission or reduction of the sentence, his statement shall be recorded disclosing all matters relating thereto, and evidence relating thereto shall be examined. (2) If any accused, while making a statement before the court, makes a claim different from what he made before the investigating officer, the court may permit the plaintiff party to conduct or cause to be conducted further investigation into the evidence or claim presented by him and to submit additional evidence in the court, if so requested. (3) Where an order is made pursuant to sub-section (2), the court shall not render a judgment in that case until such additional evidence is submitted. Provided that, if such additional evidence is to be submitted, it must be submitted before the order for examination of evidence is made. (4) If any accused does not fully confess to the alleged offence but confesses partially, the court shall order the examination of further evidence to the extent of the matter for which he has not confessed. 124.

125. Date to be fixed for examination of evidence: (1) In the following circumstances, the court shall, preparing an order sheet disclosing also the issues to be determined as ascertained under section 124, fix a date for the examination of evidence:-

(a) If the accused refuses to make a statement under section 122,

(b) If the defendant fails to file a reply,

(c) If the accused or defendant, by denying the accusation or claim against him in whole or in part, makes a statement or gives a reply,

(d) If the court prepares an order sheet for examination of evidence pursuant to clause (a) or (b) of the proviso to sub-section (1) of section 123,

(e) In other circumstances as the court deems appropriate.

(2) While fixing a date for the examination of evidence pursuant to sub-section (1), the court shall fix such a date, estimating the time by which witnesses may appear and documents and objects of evidence may be submitted, so that evidence can be collected as soon as possible.

(3) If the plaintiff party in any case requests time for submitting additional evidence pursuant to sub-section (2) of section 123, the court shall, while fixing a date under sub-section (1), ordinarily fix a date for the examination of evidence within two months from the date of filing of the case.

(4) While making an order to fix a date for the examination of evidence pursuant to sub-section (2) or (3), the court shall order and fix a date for the examination of all evidence to be examined in the case at the same time as far as possible.

(5) After an order is made to fix a date pursuant to sub-section (1) or (2), the concerned party to the case shall submit or cause to appear before the court, on the date so fixed, the evidence he is required to submit or the witnesses he is required to produce. 126.

Party or witness in detention or imprisonment to be produced: (1) If any party or witness in a case is in detention or imprisonment, and if it is necessary to produce him for recording his statement or testimony or for producing him in another case related to him, the court shall, specifying the reason, order the concerned office to produce him on the date fixed for that purpose. (2) Upon receiving an order under sub-section (1), the concerned office shall, with the escort of security personnel, cause such party or witness to appear before the court. (3) Notwithstanding anything written in sub-section (2), if there is a reasonable cause that such party or witness cannot be produced before the court due to security reasons or physical disability, such office may, with the permission of the court, make arrangements for examining him through audio-video conference. (4) If any party or witness in a case is examined through audio-video conference pursuant to sub-section (3), a record of what he says shall be maintained. 127. Sequence of examination of evidence: (1) On the date fixed for the examination of evidence, except where the court otherwise orders, the evidence of the plaintiff's witnesses and then of the defendant's witnesses shall be examined, subject to the law relating to evidence. (2) If any objection is raised immediately by the other party that any evidence presented by any party or any matter stated by any witness is inadmissible, or ought not to be taken as evidence, or is irrelevant, the judge shall immediately decide whether such objection is reasonable or not. (3) The court shall not permit any party to present evidence unrelated to the case. 128.

Provision relating to proceedings of a person of unsound mind: (1) If there is any reasonable cause to believe that any accused is of unsound mind and is thereby incapable of making his defense, the court may order his examination by a licensed medical practitioner and also order treatment. (2) If, upon examination under sub-section (1), the accused is found to be incapable of making his defense by reason of mental unsoundness, an order sheet shall be prepared to that effect and the case shall be stayed in respect of him. (3) Notwithstanding anything written elsewhere in this Act, if such accused is in detention, the court may, if it deems reasonable, order his release from detention during the period of proceedings under sub-section (1) or after an order sheet is prepared under sub-section (2). (4) While releasing the accused under sub-section (3), the court shall impose a condition on his guardian that such accused shall be taken care of so as not to cause any harm or loss to anyone, and that he shall be produced before the court when ordered by the court after he becomes sane. (5) as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075. While releasing from detention under sub-section (3), the court may, if it so desires, take a deposit or bail from the guardian pursuant to Chapter-7. (6) If an accused of unsound mind who is in detention pending trial is released from detention under sub-section (3), the court shall order the concerned prison to provide special care in circumstances other than such release. (7) If the case of an accused of unsound mind has been stayed under sub-section (2), after such accused becomes sane, the court shall revive the stay and produce him before the court to commence the trial of the case. Provided that, before revoking the stay, the court shall have such accused examined again by a licensed medical practitioner, and such medical practitioner shall have certified that the accused has become sane. (8) The court may, if it so desires, order the doctor certifying sanity under sub-section (1) or (7) to appear as a witness. (9) Notwithstanding anything written elsewhere in this section, if there are other persons also as defendants along with the person of

unsound mind, the hearing of the case in respect of such other defendants shall not be deemed to be impeded. 129. Trial of case to be held in open court: The court shall, while conducting the trial of a case, hold it in open court.

Provided that the trial of cases involving espionage, human trafficking and transportation, sexual offences, cases where a child is accused or victim, violence against women, rape, incest, or cases between husband and wife, or other cases where the court deems it appropriate to hear in camera and so orders, may be held in camera, and in such camera court, the court may prohibit entry to anyone other than the parties concerned with such case, the concerned legal practitioners, court staff, and other persons deemed necessary by the court. 130. Accused may appoint legal practitioner for his defense: (1) An accused charged with any offence may, for refuting the accusation against him or for his defense, appoint a legal practitioner of his choice to conduct the case. (2) If an accused charged with an offence punishable with life imprisonment or imprisonment for ten years or more does not appoint his legal practitioner, the court may order that such accused be defended by a legal practitioner appointed by the court. (3) Notwithstanding anything written elsewhere in this section, if any accused does not wish to engage a legal practitioner under sub-section (1) or refuses to be defended by a legal practitioner appointed by the court under sub-section (2), the proceedings of the case shall not be deemed to be impeded. 131.

Judgment to be rendered: (1) The judge shall render a judgment in the case ordinarily within one month from the conclusion of the examination of evidence. (2) If it is not possible to render a judgment within the period under sub-section (1), the reason therefor shall be disclosed and information thereof shall be given to the appellate court. (3) While rendering a judgment pursuant to this section, it shall be made in the format as per Schedule-43, mentioning the following matters as well:- (a) A brief description of the case and necessary matters related thereto, (b) If any legal practitioner argued in the case, the main points of such argument, (c) The evidence presented by the parties to the case, the credibility or impeachability of such evidence, the basis thereof, the sufficiency or insufficiency of the evidence, (d) If any party raised any legal question in the case, matters relating thereto, (e) The grounds and reasons for conviction or acquittal, (f) Whether appeal lies or not and the court where the appeal is to be filed, (g) Other necessary matters. (4) While rendering a judgment pursuant to this section, the judge may pronounce only his decision if the full text of his judgment is not ready, and the full text if it is ready. (5) If only the decision is pronounced under sub-section (4), the judge shall write a brief description of such decision in the opinion book, affix his signature and seal, and also have the parties present in the case affix their signatures and seals. Provided that, in cases where the Government of Nepal is the plaintiff, it shall not be necessary to have the government attorney affix his signature and seal. (6) If a decision is pronounced under sub-section (5), the judge shall, within as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.twelve working days, write the judgment and attach it to the case file.

Explanation: For the purpose of this sub-section, "pronouncement of decision" shall be understood to mean the pronouncement of a decision determining the sentence.

as added by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.(6a) In the judgment prepared under sub-section (6), the date of judgment and the date of preparation of the judgment shall be mentioned, and the judge shall sign and certify it.

(7) If the judgment is not written within the period under sub-section (6), the concerned party may, within three days from the expiry of such period, file a complaint before the High Court, and in the case of a judgment of a subordinate court, before the Chief Judge of the concerned High Court, and in the case of a

judgment of the Supreme Court, before the Chief Justice.

(8) Upon receiving a complaint under sub-section (7), the concerned Chief Judge or Chief Justice shall, within one week, direct the concerned judge to complete the preparation of the judgment.

(9) The decision under sub-section (5) shall, as far as possible, be immediately placed on the court's website.

(10) The court shall post a list of judgments that have been prepared and certified each week on the court's notice board and also place it on its website. 132. Notice and copy of judgment to be given: (1) The court shall give a notice of the judgment in the format as per Schedule-44 to an accused or defendant who was not a party from the beginning of the proceedings, an accused in detention or imprisonment, or an accused in a case where only one party is involved and the proceedings are ex parte.

(2) The notice under sub-section (1) shall be served in the same manner as a summons, and if such notice cannot be served, the notice shall be published in a national daily newspaper owned by the Government of Nepal.

(3) In respect of cases under Schedule-4, the expenses incurred for publishing the notice under sub-section (2) shall be borne by the concerned party.

(4) Information of the judgment rendered in cases under Schedule-1, Schedule-2, and Schedule-3 shall also be given to the office of the concerned government attorney. 133. Case abates upon death: (1) Notwithstanding anything written elsewhere in this Act, if an accused or defendant in any case dies, the court shall abate such case.

Provided that, if there is more than one accused or defendant, the case shall not be abated merely by the death of any one accused. (2) Notwithstanding anything written in sub-section (1), in a case involving as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.recompense or compensation, even if the accused or defendant dies, the court may, after examining the evidence contained in the case file and such other evidence as it deems necessary to examine, make a decision to determine as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.the recompense or compensation. (3) Even if any complainant dies, in a case under sub-section (2), if the heir of such complainant comes to accept the case within thirty days from the death of such complainant, the court shall cause the acceptance, and after examining the evidence contained in the case file and such other evidence as it deems necessary to examine, determine whether recompense or compensation should be paid or not. (4) If the party filing an appeal, review, or petition for retrial dies, or the person previously convicted in such case dies, such appeal, review, or retrial case shall be consigned to records. Provided that - (a) If only one person among the same party dies, the case shall not be consigned to records without proceeding with the case in respect of the other persons, (b) In a case involving recompense, if the heir so desires, he may accept the case within thirty-five days from the date of knowledge. Chapter-14 Provisions Relating to Appeal and Reference 134. Appeal lies: (1) A party dissatisfied with any judgment or final order made by a court may, within as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.seventy days in the case of a criminal case where the Government of Nepal is the plaintiff, and within thirty days in other cases, from the date of knowledge of the judgment, file an appeal.

Provided that, if a party wishing to appeal files a petition showing the reason for not being able to appeal within such period, and if the content of the petition is found reasonable, the appellate court may extend the time by up to thirty days.

(2) A person wishing to appeal under sub-section (1) shall cause the appeal to be registered in the appellate court of the court that rendered the judgment.

(3) Notwithstanding anything written elsewhere in this Act, if at the time of hearing before the court, the party to the case or his representative was present, or his legal practitioner was present and argued, and the judgment was rendered on the same day, the party to the case shall be deemed to have knowledge of such judgment.

as added by the Act Amending Some Nepal Acts relating to the Civil Code, 2075. Provided that, in the case of a case where the Government is the plaintiff, the period for filing an appeal shall commence from the date of receipt of information of the judgment under sub-section (4) of section 132.

(4) Notwithstanding anything written elsewhere in this section, after the expiry of a period of one year from the date of judgment, the party shall be deemed to have had automatic knowledge of the judgment. 135. Appeal may be registered through the court rendering the judgment or the prison where the appellant is in custody: (1) Notwithstanding anything written in sub-section (2) of section 134, a person wishing to appeal under sub-section (1) of that section may also file an appeal through the court that rendered the judgment, or if the person convicted by such judgment is in custody, through the prison where he is in custody.

(2) If an appeal is registered under sub-section (1), such court or prison shall, disclosing the fact whether the appellant has served or paid the sentence imposed on him or has given deposit or bail therefor, send the appeal to the appellate court as soon as possible, and inform the appellant thereof.

(3) The court that rendered the judgment shall, while sending the appeal under sub-section (2), also send the relevant case file along with it. 136.

137. To be kept in custody while filing an appeal: (1) The following persons shall be kept in custody while filing an appeal:-

(a) A person sentenced to life imprisonment,

(b) A person sentenced to imprisonment for more than ten years,

(c) A person convicted of an offence under Schedule-1 or Schedule-2 and sentenced to imprisonment for more than three years,

(d) A person who was in detention pending trial and upon conviction has been sentenced to imprisonment,

(e) A person who has been sentenced to imprisonment and does not have a permanent residence in Nepal.

(2) Notwithstanding anything written in sub-section (1), if a person aged seventy-five years or above, or a person recommended by a Medical Board formed by the Government of Nepal as being suffering from an incurable or very serious disease incapable of being kept in custody, or a person sentenced to imprisonment for up to ten years who was not in detention due to an order of the court that he need not be kept in custody pending trial, files a petition stating reasons seeking permission to file an appeal without being in custody, and if such reasons appear reasonable, the appellate court may, after taking deposit or bail from him, permit him to file an appeal.

(3) If permission is granted under sub-section (2), such court shall prepare an order sheet stating the reasons for permitting the appeal without being in custody and attach it to the case file.

as amended by the Act Amending Some Nepal Acts relating to Good Governance and Public Service

Delivery, 2081.(4) A person other than those mentioned in sub-sections (1) and (2) may, if he had deposited deposit or bail in the trial court, file an appeal by depositing an additional deposit or bail of fifteen per cent of such deposit or bail amount.

Provided that, if the trial court did not require deposit or bail, or if the appellant was acquitted and the appellate court has imposed imprisonment, the appellant may file an appeal by depositing the amount corresponding to the imprisonment.

(5) If a person who is unable to give deposit or bail under sub-section (4) has been sentenced to imprisonment, he may file an appeal only by being in custody for such sentence.

(6) If an appeal filed by a person who is in custody due to inability to give deposit or bail under sub-section (2) or (4) is not decided within as amended by the Act Amending Some Nepal Acts relating to Good Governance and Public Service Delivery, 2081.one year from the date of registration of such appeal, the relevant appellate court may release him from custody after such period and keep him on bail and conduct the trial as amended by the Act Amending Some Nepal Acts relating to Good Governance and Public Service Delivery, 2081..

(7) If a judgment cannot be given within the period under sub-section (6), such court shall, stating reasons, give information thereof to the appellate court.

(8) Notwithstanding anything written elsewhere in this section,

(a) If a person who was in detention or imprisonment in the course of proceedings has already served the sentence according to the judgment, he need not be kept in custody or give deposit or bail for filing an appeal,

(b) No person shall be kept in custody, merely because he has appealed, for a period exceeding the sentence imposed by the judgment.

(9) In the case of a person who has given deposit or bail under Chapter-7, as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.while filing a petition or an appeal, such deposit or bail may, to the extent it suffices, be treated as deposit or bail for the purposes of this section.

as omitted by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.(10)

(11) If the property of a person other than the person appealing in the course of proceedings is held as deposit or bail, such property shall not be treated as deposit or bail for the purposes of this section without the consent of such person. 138.

Calling for case file: (1) Except where the case file is received under sub-section (3) of section 135, after an appeal is registered, the appellate court shall, as soon as possible, order the concerned court to send the case file of such case. (2) Within three days from the date of receiving the order under sub-section (1), the concerned court shall send the case file to the appellate court. 139. Date to be fixed for hearing of appeal: After receiving the case file under sub-section (3) of section 135 or section 138, the appellate court shall fix a date for the hearing of the appeal. 140. Hearing of appeal: (1) The appellate court shall complete the hearing of the appeal within six months from the date of receipt of the case file from the lower court. (2) While hearing the appeal under sub-section (1), if the decision of the lower court appears reasonable and no substantial difference is found, the appellate court may, stating the reason therefor, reject the appeal claim. as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.(3) While hearing under sub-section

(1), if the decision of the lower court appears likely to be varied, the appellate court shall, stating the reason therefor, order that the respondent be called for hearing. as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.(4) If an order is made to call the respondent under sub-section (3), the appellate court shall, attaching a copy of the appeal petition, issue a notice summoning the respondent to appear within fifteen days, exclusive of travel time. as added by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.(4a) Notwithstanding anything written in sub-section (4), if the appellate court so desires, the notice under sub-section (1) may be served by itself or through the court that decided the original case, in accordance with the procedure under this Code. (5) as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.A person who receives the notice under sub-section (4) may, within the period fixed by the court, file a written defense refuting the appeal claim. (6) The written defense filed in the court under sub-section (5) shall be in the format as set out in Schedule-46 as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.. (7) After hearing under sub-section (3), the court shall decide on the appeal. 141.

Ex parte hearing of appeal if respondent absent: (1) If the respondent does not appear within the period of the notice given under sub-section (3) of section 140, the appellate court may fix a date at least fifteen days later for the decision of the appeal, and on such date, hear the appeal and decide it. (2) Notwithstanding anything written in sub-section (1), if the respondent, showing any reasonable cause for not being able to appear within the period of the notice given under sub-section (3) of section 140, files a petition before the date fixed under sub-section (1), and if such cause appears reasonable, the court may extend his time, order him to appear on the date fixed under sub-section (1), hear the appeal and decide the case. 142. Need not be on bail: (1) If the appellant or respondent does not wish to be on bail in the course of the appeal proceedings, he may file a petition to that effect in the court. (2) Upon receipt of such petition under sub-section (1), the court may, after obtaining an undertaking from the appellant or respondent to appear when required, release him from bail. Provided that an appellant or respondent not on bail may, if he so desires, appear on the date fixed for hearing of the appeal. (3) Notwithstanding anything written elsewhere in this section, if during the hearing of the appeal the court finds that any matter needs to be inquired into or any evidence needs to be presented with regard to the appeal, the appellant or respondent may be summoned and kept on bail in such circumstances. 143. Notice or order given to appellant or respondent to be served like summons: as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.Any notice or order given by the court to the appellant or respondent under section 140 or 142 shall be served in the same manner as a summons under Chapter-6. 144.

Powers of appellate court: (1) While hearing an appeal under this Chapter, the appellate court shall have the following powers:- (a) To confirm or reverse the judgment of the lower court, or to quash it wholly or partly, (b) To reduce or increase the quantum of sentence imposed by the lower court on the convict, or to vary the sentence, (c) If the judgment was rendered without examining necessary evidence, to examine such evidence itself or order the lower court to examine it, (d) If any issue required to be determined in the case has not been determined, to determine such issue itself or send it to the lower court for determination as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075., as added by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.(e) To make incidental or consequential changes in the judgment of the lower court. (2) If an appeal is filed only by a particular convict or defendant against the judgment of the lower court, and while deciding such appeal it appears that the judgment of the lower court should be varied in respect of a convict or defendant who has not appealed, the appellate court may, stating the reason therefor, exercise the powers mentioned in sub-section (1) in respect of such convict or defendant as well and render a judgment according to law. (3) Notwithstanding anything written elsewhere in this

section, the appellate court may exercise, as necessary, the powers vested in the lower court. 145.

Reference: (1) If any court renders a judgment sentencing any accused to imprisonment for twenty years or more or to life imprisonment, such court shall, within thirty-five days from the date of such judgment, submit a reference along with the case file to the appellate court. as added by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.(1a) In a case where an accused is required to be sentenced to life imprisonment under prevailing law, if the accused has been proved guilty before the court, and considering the circumstances of the commission of such offence, the judge is of the opinion that sentencing to life imprisonment would be excessive in the interest of justice, and the judge renders a judgment with an opinion proposing a lesser sentence, the judge shall, within thirty-five days from the date of such judgment, submit the opinion along with the case file to the appellate court. (2) If the appellate court, upon reference under sub-section (1), also determines to sentence such accused to imprisonment for twenty years or more or to life imprisonment, it shall submit a reference to the Supreme Court. as added by the Act Amending Some Nepal Acts relating to the Civil Code, 2075.(3) If an opinion is submitted under sub-section (1a) and the appellate court confirms the lesser sentence so proposed, it shall submit the opinion to the Supreme Court. 146. Appeal lies against reference judgment: A party dissatisfied with a judgment made subject to reference under section 145 may file an appeal against such judgment. 147. Reference judgment not to be made until appeal period expires: (1) In a case where a reference is submitted under section 145, no reference judgment shall be made until the period for filing an appeal expires. (2) If an appeal is filed within the period under sub-section (1), the reference entry shall be struck off and the case shall be heard by way of appeal. Provided that if only some of the convicted persons appeal, the case in respect of those who have not appealed shall also be decided through the same appeal. 148.

Procedure for submitting reference: (1) When any court submits a reference in any case under section 145, it shall also send the case file of such case. (2) In a case where a reference is submitted under sub-section (1), if the accused is in detention, the date of detention, the name of the prison where he is held, and if the accused is absconding or has escaped from detention, that fact shall also be disclosed while submitting the reference. (3) Other procedures relating to the hearing of a reference shall be similar to the hearing of an appeal. 149. Powers of court hearing reference: (1) The court hearing a reference may exercise the same powers as those vested in an appellate court. (2) While examining a reference, if it appears that the judgment of the lower court is not correct and some change may be required, a period of fifteen days shall be given and the concerned parties shall be summoned. 150. Appeal and reference judgment: An appeal judgment shall be made in the format according to Schedule-47, and a reference judgment shall be made in the format according to Schedule-48. Provided that, in circumstances where an appeal and a reference are to be rendered in the same judgment, it shall be made in the format according to Schedule-47. Chapter-15 Provisions Relating to Execution of Judgment 151.

Entry of sentence to be prepared: (1) After a judgment is rendered in any case by a court, the concerned court shall prepare an entry of the punishment, fine, or determined recompense or compensation imposed according to such judgment. (2) If a person is convicted or found guilty by an appellate court upon dismissal or reversal of the judgment of the lower court, an entry thereof shall be prepared and a copy of the judgment shall be sent to the concerned District Court for execution. (3) After an entry is prepared under sub-section (1) or (2), the concerned court shall execute the judgment, and if any work for the execution of the judgment is required to be done by any body, it shall order the concerned body to do such work. (4) While making an order under sub-section (3), if the person sentenced to imprisonment is present in court, the court shall send him to prison; if he is not present or not in detention or imprisonment, the court shall send an order in the

format as per Schedule-49 to the concerned police office to arrest him and hand him over to the prison. (5) as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075. If any doubt arises regarding the execution of the judgment, the prison office shall write to the concerned District Court, and shall act according to the order issued by the District Court. 152.

Body responsible for execution of judgment: (1) Regardless of the level of court that rendered the judgment in a case, the execution of the judgment in such case shall be carried out by the District Court where the indictment or complaint was filed. (2) The execution of a judgment in a case where the appellate court conducted original proceedings and decided shall also be carried out by the concerned District Court. (3) Notwithstanding anything written elsewhere in this section, if the District Court responsible for execution of the judgment cannot be ascertained due to the number of defendants, their residence, or the location of their property, the judgment in the case shall be executed by the District Court designated by the appellate court. (4) The execution of a judgment made by a judicial body other than a regular court shall be carried out by the concerned body. (5) Notwithstanding anything written in sub-section (4), if there is no provision to the contrary in law regarding the execution of the judgment, the concerned District Court shall execute the judgment in accordance with this Act. 153. Execution of judgment to be stayed: (1) In the following circumstances, the court shall stay the execution of the judgment:- (a) In a case where an appeal lies under law, if an appeal has been filed, until the case is finally decided by way of appeal, or if no appeal has been filed, until the appeal period expires, (b) In a case where a reference is to be submitted under law, until the reference submitted is disposed of. (2) If an appeal is filed under clause (a) of sub-section (1), the party filing the appeal shall submit a petition stating the fact of appeal to the concerned court. (3) Notwithstanding anything written in sub-section (1), unless otherwise provided in this Act, if a judgment has been rendered sentencing any convict to imprisonment, such convict shall be sent to prison immediately. 154. To be kept in custody: as amended by the Act Amending Some Nepal Acts relating to the Civil Code, 2075. (1) In the case of a convict present in court under sub-section (4) of section 151, after a warrant of imprisonment is issued, and in the case of an absconding convict as well, after the convict is arrested by the police office and produced before the court and a warrant of imprisonment is issued in his name, the prison office shall keep such convict in custody in accordance with law.

155. Amount may be paid in lieu of imprisonment: as amended by the Act Amending Some Nepal Acts relating to Good Governance and Public Service Delivery, 2081. (1) If a convict, having been convicted for the first time and sentenced to imprisonment for one year or less, files a petition seeking release from imprisonment by paying an amount in lieu of such imprisonment, the court shall order that he need not be imprisoned upon payment of such amount.

(2) Before making an order under sub-section (1), an undertaking shall be obtained from such person that he will not commit any offence and will maintain good conduct.

(3) When a convict ordered under sub-section (1) to be released from imprisonment by paying an amount pays the amount in lieu of imprisonment, he shall pay at the rate of three hundred rupees per day of imprisonment.

(4) If a person released from imprisonment under sub-section (1) commits any offence punishable with imprisonment within three years from the date of such release, the sentence of imprisonment

(2) Notwithstanding anything written in sub-section (1), if a person who has been sentenced to imprisonment or is required to undergo imprisonment under prevailing law for a fine, government dues, or any other amount, does not appear before the court, does not come to serve imprisonment in prison, or cannot be

arrested within the following period, the court shall strike off the imprisonment record standing against him/her:

- (a) In case of a sentence of life imprisonment, fifty years,
- (b) In case of a sentence of imprisonment for more than ten years, forty years,
- (c) In case of a sentence of imprisonment for more than five years up to ten years, thirty years,
- (d) In case of a sentence of imprisonment for more than one year up to five years, twenty years,
- (e) In case of a sentence of imprisonment for up to one year, twelve years.

(3) If a person whose record has been struck off pursuant to sub-section (2) is found after such period has elapsed, the court shall execute the judgment in accordance with this Chapter as if the record had not been struck off in his/her case.

(4) While striking off the record pursuant to sub-section (2), if any property of such person has been attached under this Act, such property shall be confiscated and sold by auction, and the amount received shall be deposited into the Consolidated Fund.

(5) Notwithstanding anything written in any prevailing law, a person whose record has been struck off due to non-service of sentence under this section shall be deemed ineligible for appointment, nomination, designation, or election to any public office of responsibility until he/she serves the sentence as per the judgment that resulted in such record.

161. Period spent in detention to be deducted from imprisonment: (1) If a person convicted and sentenced to imprisonment by a court has been in custody or detention during the investigation, the period so spent in detention shall be deducted from the imprisonment as per the judgment, and he/she shall be imprisoned only for the remaining period.

(2) If an offender who was in detention during the investigation is sentenced only to a fine and not to imprisonment, the total amount calculated at the rate of three hundred rupees per day for the period spent in detention shall be deducted from the amount of fine payable by such offender. 162. Execution of sentence of fine: (1) A person liable to pay a fine according to the record established under Section 151 shall pay the amount of fine immediately.

(2) Notwithstanding anything written in sub-section (1), if such person is unable to pay the fine immediately and provides any property as security for it, the court may order the fine to be paid in a maximum of three installments within one year.

(3) Notwithstanding anything written in sub-section (2), if the person fined has deposited any deposit or bail under Chapter 7 or Section 137, the amount of fine shall be recovered from such deposit or bail, and an order to pay the remaining amount only in installments shall be issued.

(4) Except where arrangements are made to pay the fine in installments under sub-section (2), or where the sentence has been served while in imprisonment or detention during the proceedings of the case, or where the amount of fine is recoverable from the deposit or bail kept under Chapter 7 or Section 137, if the offender does not pay the amount of the fine immediately after the final judgment Amended by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075., the court shall send an order to the concerned prison for imprisonment for the fine.

(5) When an order is made under sub-section (4), if the offender who fails to pay the fine has paid part of the fine and kept the remainder, or if the period of imprisonment or detention already undergone during the

proceedings of the case is such that part of the sentence is remitted, such period shall also be deducted, and the person shall be imprisoned on account of the remaining fine only in proportion to the total amount of the fine and the term of imprisonment for non-payment of fine. 163. Provision relating to government dues or other amounts: (1) When a judgment is given for recovery of dues, priority shall be given to government dues over private dues for recovery.

Provided that if a judgment for recovery of private dues had already been given before the judgment for recovery of government dues, priority shall not be given to government dues. (2) If the government dues or any other amount payable as per the judgment cannot be recovered or is not in a position to be recovered, and the property of the offender liable to pay such dues or amount has not already been attached, it shall be attached as soon as possible after the judgment. (3) If the offender does not pay the dues or other amount under sub-section (1) within thirty days from the date the judgment becomes final, in the case of movable property attached under sub-section (2) of such person, such property shall be obtained from the body or institution where it is located, and in the case of immovable property, it shall be sold by auction and the amount recovered. (4) If the government dues are not recovered even after selling the property by auction under sub-section (3), such person shall be imprisoned for the government dues. 164.

Imprisonment may be imposed for government dues: (1) The government dues or any other amount determined to be recoverable by a court judgment shall be paid by the concerned person. (2) If the government dues or such amount under sub-section (1) is not paid by such person, his/her property shall be assessed and recovered. (3) If the government dues or such amount cannot be recovered even after assessment under sub-section (2), imprisonment for the following periods shall be determined for such person for the following government dues or such amount: (a) For dues from five thousand rupees to ten thousand rupees, one month, (b) For dues exceeding ten thousand rupees up to twenty-five thousand rupees, three months, (c) For dues exceeding twenty-five thousand rupees up to fifty thousand rupees, six months, (d) For dues exceeding fifty thousand rupees up to one hundred thousand rupees, one year, (e) For dues exceeding one hundred thousand rupees, for every fifty thousand rupees or part thereof, Amended by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075. at the rate of six months. (4) When imprisonment is to be imposed for an amount less than that mentioned in clause (a) of sub-section (3), it shall be done at the rate of three hundred rupees per day. (5) Notwithstanding anything written elsewhere in this section, when imprisonment is to be imposed for government dues, the period of imprisonment shall not exceed seven years. 165.

Procedure for recovery of private dues or compensation: (1) A person liable to pay private dues, compensation payable to the victim or his/her heir, or any other amount as determined by a court judgment shall pay it within six months from the date of the judgment. (2) If such person does not pay such dues, compensation, or amount within the period under sub-section (1), he/she shall be liable to a fine of up to ten thousand rupees. (3) If the person liable to pay dues, compensation, or such amount within the period under sub-section (1) fails to pay, the person entitled to recover such dues, compensation, or amount may, within three years from the date of the final judgment, file a petition indicating the property of the person liable to pay such dues, compensation, or amount. (4) Upon receipt of a petition under sub-section (3), the court shall attach and sell such property by auction and recover the dues, compensation, or such amount, respectively. (5) If the person liable to pay dues, compensation, or amount under sub-section (1) deposits such amount in court, or if any amount has been deposited as bail or security under sub-section (1) of Section 68 and the compensation, dues, or such amount is recoverable therefrom, recovery shall be made accordingly. (6) If the person entitled to recover dues, compensation, or other amount within the period under sub-section (3)

cannot locate the property, the court shall keep such petition on file so that recovery may be made when such property is found and the person notifies the court. (7) If the dues, compensation, or other amount cannot be recovered under sub-section (4), the person entitled to recover the remaining dues, compensation, or other amount may file a petition for the imprisonment of the offender within thirty days from the date of sale by auction of the offender's property or from the date the petition was kept on file under sub-section (6). (8) Upon receipt of a petition under sub-section (7), the court shall convert the remaining dues or amount into imprisonment at the rate of three hundred rupees per day and imprison the person liable to pay such dues or amount. (9) When imprisoning a person under sub-section (8), imprisonment shall not exceed two years for individual dues and four years for dues of the Government of Nepal, Provincial Government, or a public institution wholly or substantially owned or controlled by a local level.

166. Recovery of amount as per judgment from deposit: (1) Notwithstanding anything written elsewhere in this Chapter, if an offender has deposited any amount as deposit under this Act, the fine, dues, compensation, or other amount payable by him/her as per the judgment shall be recovered and paid from such deposit to the extent possible.

(2) When recovering under sub-section (1), recovery shall be made based on the following order of priority:

(a) Fine,

Amended by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.

(b) Government dues,

(c) Compensation,

Added by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.

(c1) Dues,

(d) Any other amount, if any.

(3) If the fine, dues, compensation, or other amount cannot be recovered or paid from the amount under sub-section (1), action shall be taken under this Chapter only for the shortfall and recovery or payment shall be made.

(4) Notwithstanding anything written elsewhere in this Chapter, if an offender pays the fine, dues, compensation, or any other amount payable as per the judgment immediately, or if it is recoverable as mentioned in sub-section (1), except in such cases, if the offender or anyone on his/her behalf has provided any property as security under this Act, such property shall be sold by auction and recovery made.

(5) Notwithstanding anything written elsewhere in this section, if any person has provided his/her property as deposit or bail for an offender, the court shall give that person a forty-five-day notice to pay the fine, dues, compensation, or other amount payable by the offender as per the judgment before selling such person's property by auction, and if such person pays such amount within that time, the property deposited or bailed to the extent of such payment shall be released.

(6) In the case of the remaining amount not recovered from the property under sub-section (3), other property of the offender shall be sold by auction and recovery made, and while recovering, priority shall be given as per sub-section (2).

(7) For the purpose of auction under sub-section (6), if the offender's share has not been separated, the share shall be separated according to law and then auctioned. 167.

Procedure for attaching, seizing, or controlling property: (1) When attaching, seizing, or taking control of the

property of any Amended by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075. accused, defendant, or offender under this Act, the concerned court shall do the following: (a) If the property is registered or requires separate permission, notify the office responsible for registration, licensing, or renewal of the attachment, (b) If the property is cash, notify the institution holding such cash of the attachment, (c) If the property yields crops or rent, order the concerned local level to collect such crops or rent and deposit them in a deposit account, Amended by the Act Amending Some Nepal Acts Relating to Good Governance and Public Service Delivery, 2081. (d) If the property is perishable or likely to deteriorate, livestock, or vehicles, sell such property, livestock, or vehicles by auction and have the proceeds deposited in a deposit account. Provided that in the case of a vehicle, if the owner of the vehicle deposits the amount calculated after deducting depreciation from the market value of such vehicle into the deposit account, such vehicle shall be returned to the concerned owner. (2) When attaching the property of any person under this Act, if he/she has given any loan or made any investment to another person, the court shall order the debtor not to allow such person to recover the principal, interest, or any other return of such loan or investment. (3) The principal, interest, return, and other similar amounts of the loan or investment under sub-section (2) shall be deposited by the debtor in the court. (4) If any other person has a right over the property attached under this section, such person may, within thirty-five days of learning of such attachment, file a petition Amended by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075. in the court that attached the property, showing his/her right. (5) Upon receipt of a complaint under sub-section (4), if that court has the authority to decide on the right or title to the property according to law, that court shall make a decision thereon; if not, it shall send such complaint to the court having authority. (6) If the court makes a decision under sub-section (5), a person dissatisfied with such decision may appeal according to law. 168. Date to be fixed for payment of dues, compensation, or other amount: (1) When fixing a date for payment of dues, compensation, or any other amount as per the judgment, the purpose and the date fixed shall be stated with reasons.

Provided that in the case of government dues or compensation, the government side need not appear on the date. (2) If the person entitled to payment is absent on the date fixed under sub-section (1), the proceedings for payment shall be adjourned that day. (3) If the person entitled to payment of dues, compensation, or any other amount files a petition in court within fifteen days, once, showing a reasonable cause for not being able to appear on the date fixed under sub-section (1), the dues, compensation, or other amount payable to such person as per the judgment shall be paid. (4) If the person entitled to payment of dues, compensation, or any other amount who did not appear on the date fixed under sub-section (1) does not file a petition within the period under sub-section (3) Amended by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075., the matter relating to the payment of such dues, compensation, or other amount shall be kept on file for up to one year. (5) If the concerned person appears within the period under sub-section (4), the dues, compensation, or other amount payable as per the judgment shall be paid. (6) If the concerned person does not appear within the period under sub-section (4), no further action shall be taken thereafter regarding the payment of such dues, compensation, or other amount. Chapter 16 Miscellaneous Added by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.168A. Right to complain: (1) A concerned person dissatisfied with the work or proceedings done by a court employee in a case may complain to the judge of the same court within fifteen days. (2) A person dissatisfied with the decision on the complaint filed under sub-section (1) may file a petition in the appellate court within fifteen days of such decision. (3) A complaint filed under sub-section (1) shall be disposed of within one month, and a petition filed under sub-section (2) shall be disposed of within two months. (4) A party who receives notice for appearance for execution of judgment and remains absent on the date shall not be entitled to file a complaint or petition under this section. Amended by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.169.

Jurisdiction of concerned District Court: (1) In cases mentioned in the Criminal Code, the District Court shall conduct initial proceedings, hearings, and adjudication. (2) Notwithstanding anything written in sub-section (1), if there is a separate provision regarding the authority to hear cases under the Criminal Code, or if the Government of Nepal has designated a separate authority to hear such cases by publishing a notice in the Nepal Gazette, it shall not prevent such authority from conducting initial proceedings, hearings, and adjudication of such cases. (3) If, according to law, a court, body, or authority has the power to conduct proceedings, hearings, and adjudication in a case, but such court or body has not been formed or the authority has not been designated, the concerned District Court shall also have the power to conduct proceedings, hearings, and adjudication of such case until such court or body is formed or authority is designated. Added by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.169A. Limitation period: Where a limitation period is prescribed by prevailing law, it shall be as per that; where no limitation period is prescribed, a case may be filed at any time. Omitted by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.170. 171. Register of documents: In every case, a register shall be maintained in the format as per Schedule 50, showing the serial number and details of documents in the order of registration date. 172. Documents to be destroyed: After five years of the final decision of a case, the court shall destroy documents in the file of that case, except for the following documents: (a) Complaint, charge sheet, or plaint, Added by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075. (a1) Arrest warrant or summons issued in the name of a party, (b) Statement of the accused or written defense, (c) Statements equivalent to written defense, (d) Original documents of evidence, (e) Appeal petition, if appealed, (f) Petition for retrial or review, (g) Judgment or final decision of the court, (h) Map, inventory form, property details, (i) Any other documents deemed necessary to protect according to law. Explanation: For the purpose of this section, "final decision" means the decision of the appellate court regarding an appealed judgment, and the decision of the court authorized to dispose of a scrutiny regarding a judgment for which scrutiny has been filed. 173.

Documents to be translated: (1) If any document written in a language other than Nepali is submitted in court as evidence and it appears necessary to translate such document into Nepali, the court may order the party submitting such document to submit an official translation of such document into Nepali. (2) Upon an order from the court under sub-section (1), the concerned party shall have the document translated into Nepali and submit a certified copy thereof to the court. (3) If any dispute arises regarding the translation under sub-section (2), the court may summon and question an expert on such subject. 174. Assistance of interpreter may be taken: (1) If it is necessary to record the statement or testimony of an accused or witness who does not understand or cannot speak the Nepali language, or for any other purpose, the investigating officer, prosecutor, or court may take the assistance of an interpreter of the relevant language or sign language. (2) The expenses incurred when taking the assistance of an interpreter under sub-section (1) shall be borne by the Government of Nepal. 175. Copies to be given: (1) A concerned party to a case or his/her legal practitioner may obtain a copy of any document in the case file upon payment of the fee as provided by law. Provided that any legal practitioner may obtain a copy of the judgment. (2) Notwithstanding anything written in sub-section (1), copies of documents that must be kept confidential according to law shall not be given. 176.

Cases involving conflict of interest not to be heard: (1) A judge shall not conduct proceedings, hearings, and adjudication in the following cases: (a) A case in which the judge or a near relative has an interest or concern, Explanation: For the purpose of this section, "near relative" means a person related by a degree of kinship entitled to inherit in case of intestacy, or maternal uncle, maternal aunt, stepmother, elder stepmother, younger father, elder father, mother-in-law, father-in-law, paternal aunt, paternal uncle's husband, elder

sister's husband, wife's younger brother, wife's elder sister, elder sister, younger sister, elder sister's husband, younger sister's husband, daughter's husband, sister's son, sister's daughter, sister's daughter's husband, sister's daughter's daughter-in-law, maternal grandfather, maternal grandmother, or a member of the family of such relative. (b) A case in which the judge was at any time a party, legal practitioner, or witness, (c) A case in which the judge, in the capacity of a judge, has made a decision or final order in any court, (d) A case in which the judge has at any time given an opinion on whether or not a case should be initiated, (e) A case in which the interest of the judge and the members of his/her joint family is fundamentally involved for any other reason. (2) If any circumstance under sub-section (1) is found, the judge shall pass an order stating the reason for not hearing the case. (3) If any judge is about to conduct proceedings, hearings, or adjudication of a case contrary to sub-section (1), any party to the case may submit a petition, with necessary evidence, not to conduct such proceedings, hearings, or adjudication. (4) Upon receipt of a petition under sub-section (3), the judge shall decide whether or not the petition claim is reasonable before conducting proceedings, hearings, or adjudication of the case. (5) When deciding under sub-section (4), if the petition claim appears reasonable, or if the judge himself/herself has ordered under sub-section (2) that the proceedings, hearings, or adjudication of the case should not be conducted, the case shall be transferred to another judge in the same court if available, and if no such judge is available, the matter shall be sent to the concerned appellate court for transfer under sub-section (3) of Section 96. 177.

Tasks to be performed by the judge himself/herself: (1) Among the tasks performed by the court under this Act, the following tasks shall be performed by the judge himself/herself: (a) Recording the statement of the accused or witness, (b) Administering oath to witnesses, (c) Ordering detention for trial or release on bail or security, (d) Preparing the order sheet of matters requiring decision in the case, (e) Giving orders relating to the examination of evidence, (f) Passing interim or interlocutory orders, (g) Hearing the case, (h) Conducting preliminary and pre-hearing discussions of the case, (i) Making any other necessary orders, and (j) Delivering judgment or final order. (2) Notwithstanding anything written in sub-section (1), the following matters may be done as follows: (a) The testimony of a witness may be recorded by a court employee of at least Non-Gazetted First Class rank under the direction of the judge, (b) In the absence of the judge, the most senior employee present in court may record the statement of the accused or pass orders under Amended by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075. Chapter 7 relating to detaining the accused or taking bail or security from him/her. Provided that the order made under this clause shall be presented to the judge as soon as he/she is present in court, and the judge may check and confirm, annul, or modify such order. (3) Tasks other than those written in sub-section (1) or (2) may be performed by an employee subordinate to the judge according to the direction or order of the judge. 178. Procedure to be followed when releasing a prisoner or convict: (1) If a prisoner or convict is to be released according to a judgment or order of the court, an order shall be sent to the concerned prison stating the reason for release, the full name and address of the prisoner or convict, and the details of the case. (2) Upon receipt of the order under sub-section (1), the concerned prison shall immediately release the prisoner or convict as per such order. (3) Notwithstanding anything written in sub-section (1) and (2), if the prisoner or convict to be released as per the judgment or order is present in court, he/she shall be released immediately after the judgment, and notice thereof shall be given to the concerned prison. 179. Notice to be given when releasing attached property: When property attached under this Act is to be released according to a court judgment or order, the court shall give notice thereof to the office and person concerned with the attachment. 180.

Government Attorney to plead and appeal: (1) In cases relating to offences under Schedule 1 and Schedule 2, the Government Attorney shall plead, contest, and defend on behalf of the Government of Nepal. (2) In cases relating to offences listed in Schedule 3, the case diary or appeal shall be handled by the concerned

authority, and if written to the concerned Government Attorney for defense, the Government Attorney shall provide defense. (3) While arguing in cases, the Government Attorney shall argue in accordance with the prevailing norms of professional conduct. (4) In cases under sub-section (1), if dissatisfied with the judgment or order rendered by the court, the Government Attorney shall have the right to appeal, seek review, or file a petition for retrial, unless otherwise provided by prevailing law. (5) Notwithstanding anything written elsewhere in this section, if it is necessary to have any other legal practitioner argue in addition to the Government Attorney in a particular case where the Government of Nepal is the plaintiff, the concerned body shall obtain permission from the Attorney General or a Government Attorney authorized by him/her, stating the reason. (6) After obtaining permission under sub-section (5), such body may appoint another legal practitioner. (7) The legal practitioner appointed under sub-section (6) shall argue under the general direction of the Attorney General or a Government Attorney authorized by him/her. 181. Government Attorney may complain: If a decision or order of any judicial or quasi-judicial body affects the rights, interests, or concerns of the Government of Nepal, and if the law has not designated any authority to file a case, appeal, review, or any other kind of complaint or petition against such order or decision, the Attorney General himself/herself or a Government Attorney designated by him/her may complain, appeal, review, or file any other petition against such decision or order in the concerned body, subject to law. 182. Document brought for registration to be registered: (1) If a document brought for registration in court is legally in order, it shall be registered immediately and a receipt given. (2) If a document brought for registration under sub-section (1) is not legally in order, it shall be rejected stating the defects and returned.

Amended by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.(3) If a document is rejected under sub-section (2), and if more than three days of limitation period or time remains, the document may be brought for registration with the defects rectified within the remaining limitation period or time; if less than three days of limitation period or time remains, the document may be brought for registration within seven days from the date of rejection. In either case, if brought in due form or rectified, the concerned officer shall order the registration of such document. 183. Identity of victim or witness may be kept confidential: (1) Notwithstanding anything written elsewhere in this Act, if publishing the identity of a victim or witness of a particular offence is likely to adversely affect the social prestige or honor of such person, or may cause undue fear, terror, or apprehension from the accused or any other party, or may adversely affect the personal safety or security of such person, the investigating officer may, through the Government Attorney, request the court to keep the name, surname, address, father's name, or any other identifying features of such person or witness confidential.

(2) Upon request under sub-section (1), the court may order that the name, surname, address, father's name, or identifying features of such victim or witness be kept confidential.

(3) When publishing the name, surname, address, or father's name of a person kept confidential under sub-section (2) during the hearing of the concerned case or when publishing related details, a fictitious name, surname, address, or father's name shall be used as per the court's order. 184.

Statement, document, or writing made before investigating officer may be recorded by audiovisual means: (1) Notwithstanding anything written elsewhere in this Act, in the following circumstances, the investigating officer may, by himself/herself or through others, record by audiovisual means the statement, document, or any writing of the victim, complainant, or witness in the presence of the Government Attorney: (a) If there are reasonable grounds to believe that the accused will exert undue influence on the victim, complainant, or any witness, or will cause fear, terror, or threat to prevent such person from appearing in court, or will compel such person to give a statement or testimony contrary to the statement or document made before the

investigating officer even if he/she appears in court, (b) If such person, complainant, or witness is unable to appear at the police office or the Government Attorney's office due to physical disability or being a minor, (c) If an object to be presented in court as evidence cannot be moved from its location to the court. (2) The audiovisual recording made under sub-section (1) may be accepted by the court as evidence. 185. Higher-level employee may perform tasks: (1) Any task or duty that a Government Attorney, police employee, or any other officer is required or permitted to perform under this Act may also be performed by a higher or equivalent level Government Attorney as designated by the Attorney General, or a higher or equivalent level police employee as designated by the Inspector General of Police, or any other higher or equivalent level officer of the concerned office. (2) Tasks performed under sub-section (1) shall be deemed to have been done by the authorized officer. 186. Receipt to be taken or given: (1) When any document registered in court is returned to any person or when any document is delivered to any person from the court, a receipt or acknowledgment stating the receipt or delivery of such document shall be taken and kept in the case file. (2) When the court accepts any document submitted by any person, a receipt thereof shall be given to such person. 187.

Assistance to be given in attending and signing: (1) A person required to attend as a witness in the course of any proceedings under this Act shall assist the court by attending, and a person required to sign a document prepared by the court shall do so. (2) If any person refuses to attend as a witness or to sign any document under sub-section (1), the employee conducting such task or preparing such document shall mention such fact in the relevant document, state the reason for non-attendance or non-signature, and prepare the document by having two other persons present sign it and also signing it himself/herself. (3) A document prepared under sub-section (2) shall be deemed to be legally in order. (4) If any person required to sign a document in court refuses to sign, the judge shall mention the same in the relevant document, note the reason, and keep it with his/her own signature. (5) A person who, by not attending or signing under this section, fails to assist the court may be fined up to five thousand rupees by the court. (6) If a person signing a document under this Act does not agree with any matter stated in such document, he/she may write his/her own version separately and then sign. 188. No action to be taken: (1) No question shall be raised and no case shall be filed in any court regarding the decision, prosecution, argument, and defense made in good faith by a Government Attorney in the context of any case under this Act. (2) No action shall be taken regarding the work or proceedings done in good faith by an investigating officer in connection with the investigation of cases relating to offences under Schedule 1 and Schedule 2. 189.

Provision for Investigation Committee: Notwithstanding anything written elsewhere in this Act, the investigation of a complaint filed regarding the offence of mala fide investigation or prosecution under Section 99 of the Criminal Code shall be conducted by the following committee: (a) A Deputy Attorney General of at least Gazetted First Class designated by the Attorney General - Chairperson (b) An officer of the Government of Nepal of at least Gazetted First Class designated by the Government of Nepal - Member (c) An officer of the Nepal Police of at least Gazetted First Class designated by the Government of Nepal - Member (2) If, during investigation by the committee under sub-section (1), it appears that the investigation or prosecution was mala fide, it shall send a letter to the concerned Government Attorney's office to initiate a case in that regard. (3) Notwithstanding anything written elsewhere in this Code, the investigation of offences under Sections 231, 232, 233, and 238 of the Criminal Code shall be conducted by the following committee: (a) A concerned expert doctor designated by the Nepal Medical Council - Coordinator (b) An officer of at least the eleventh level, having expertise in the relevant field of Nepal Health Service, designated by the Ministry of the Government of Nepal dealing with health matters - Member (c) A Deputy Attorney General designated by the Attorney General - Member (d) An officer of the Nepal Police of at least Gazetted First Class designated by

the Ministry of Home Affairs - Member (e) One person designated by the Ministry of the Government of Nepal dealing with health matters from among persons active in the field of consumer rights and interests - Member Added by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.(4) If, during investigation by the committee under sub-section (3), evidence of an offence by the concerned person is found, it shall send a letter to the concerned Government Attorney's office to initiate a case against him/her. 190. Permission may be given to continue the case: In a case relating to an offence under Schedule 4, where only recovery of dues or any kind of movable or immovable property is to be made, excluding sentences of imprisonment or fine, if the complainant dies, is of unsound mind, or is missing and the court-appointed period or date has passed, the heir of the complainant may, within thirty-five days, excluding travel time, from the date of death, unsoundness of mind, or disappearance, file a petition with supporting evidence to continue the case and obtain acceptance of the passed period or date.

If the court finds the matter reasonable, it may permit the continuation of the case and accept the passed period or date. 191. Mutual legal assistance may be exchanged: If any accused in a case relating to an offence that is processed, heard, and adjudicated under this Act is abroad, and a summons or arrest warrant needs to be issued in his/her name or any evidence needs to be obtained, or if any accused in a case pending in a foreign court is in Nepal and a summons or arrest warrant needs to be served in his/her name or assistance in obtaining evidence is required, it shall be done in accordance with the law relating to mutual legal assistance. 192. Documents may be exchanged through electronic means: Documents under this Act may be exchanged through electronic means in accordance with the prevailing law relating to electronic transactions. 193. Printing or mathematical errors not to affect: In conducting investigation, prosecution, and other proceedings of a case under this Act, any minor mathematical or other error or omission in writing, printing, or publication regarding the procedure under this Act shall not, by that reason alone, render the entire related work or proceedings unlawful. Added by the Act Amending Some Nepal Acts Relating to the Civil Code, 2075.193A. Fee to be charged: (1) Unless otherwise provided in this Code, the following fees shall be charged in court for the following matters:

- (a) When submitting a complaint, plaint, or written reply: Rs. 200/-
- (b) When submitting an appeal petition: Rs. 300/-
- (c) When submitting any other petition besides those under (a) and (b): Rs. 10/-

(2) Notwithstanding anything written in sub-section (1), the fee under sub

Schedule-4

(Relating to Clause (?ha) of Section 2)

1. Offences under Chapter-3 of Part 2 of the Penal Code,
 2. Criminal offenses in which the Government of Nepal is a party or in which the right, interest or concern of a constitutional body, court or public official is involved, except those mentioned in Schedule-1 or Schedule-2.
- Schedule-5

(Relating to Clause (?ha) of Section 2)

1.

Offenses under the following Chapters or Sections of the following Chapters of the Penal Code: (a) Of Part 2: (1) Chapter-14 except Section 192 (2) Chapter-15 (3) Sections 220, 224 and 226 of Chapter-18 (if the woman is 18 years of age or older) (4) Clause (ga) of Sub-section (3) of Section 249 of Chapter-21, Sections 250 and

252 (if the plaintiff is an individual or an institution other than the Government of Nepal) (5) Chapter-25 except Clauses (ka), (kha) and (ga) of Sub-section (3) of Section 276 and Section 277 (6) Sections 284, 286 and 287 of Chapter-26 (if the plaintiff is an individual) (b) Chapters 1 and 2 of Part 3 2. Criminal offenses other than those mentioned in Schedules 1, 2 or 3, 3. Offenses of a criminal nature, which, according to the prevailing law, must be filed as a private complaint (by an individual plaintiff), 4. Offense of incest, 5. Offenses under Chapter 11 relating to attempt, conspiracy, abetment of, and connected with, offenses under paragraphs 1, 2 and 3. Schedule-6 (Relating to Sub-sections (1) and (7) of Section 4) Format of Complaint Application Submitted to Shri (To be filled by Police Office) (Name and address of Police Office) Registration No.:- Registration Date:- 1. Name, surname and address (including ward/tol) of the person filing the complaint or information, Phone number:- 2. Under which law or regarding which case the application or information is given:- 3. Name, surname and address (including ward/tol) of the person committing the offense:- 4. Name of the father/mother of the person committing the offense:- 5. Physical description of the person committing the offense and other details disclosing identity:- 6. Details related to the offense: (ka) Place, location, date and time where the offense occurred, is occurring, or is about to occur, (kha) Details of the incident related to the offense, (ga) Nature of the offense and other details related to the offense, (gha) Evidence and proof related to the offense, (?a) Other details related to the offense. 7. The contents of this application are true and correct; if found to contain false statements, I shall be liable to suffer the consequences as per law. Upon being notified of the requirement to appear during police investigation or trial in court, I will appear accordingly.

Of the person giving the complaint or information: Signature:- Date:- Schedule-7 (Relating to Sub-section (3) of Section 4) Receipt of Complaint Application or Information Regarding the offense related to subject The application or information dated has been received and registered in the registration book of this Police Office on date . Office Seal:- Police personnel registering the application/information:- Signature:- Registration No.:- Name:- Post:- Office:- Date:- Schedule-8 (Relating to Sub-section (5) of Section 4) Register of Offenses Government of Nepal Ministry of Home Affairs Police Office S.No. Type of Crime Designated Investigation Officer Date and Time of Incident Date of Complaint Registration Incident Location and Date/Time of Police Departure Name, Surname, Residence of Complainant Description of Loss Name, Surname, Age, Gender, Occupation of Victim Name, Surname of Accused or Suspect Description of Accused or Suspect Details of Arrest Instruments Used in the Offense Witnesses to the Offense and Persons of the Site Inspection Memo Physical Evidence Action After Investigation Date of Witness Examination Date if Verdict Not Yet Delivered by Court Date if Appeal Not Filed Remarks Death Injured Other Loss Date Investigation Report Submitted Proposed Opinion of Investigation Officer Charges Filed by Government Attorney and Related Law Limitation Period Prepared by: Name, Signature Schedule-9 (Relating to Sub-section (4) of Section 9) Format of Arrest Warrant Issued with Court Permission Shri Address (including ward/tol) As you need to be arrested in connection with the investigation of the offense of , this arrest warrant is issued pursuant to the permission dated of the Court. Please accompany the police personnel bearing this arrest warrant and immediately come to the office. Otherwise, the police will arrest and bring you. Of the Investigation Officer: Signature:- Name:- Rank:- Office:- Date:- Schedule-10 (Relating to Sub-section (6) of Section 9) Format of Urgent Arrest Warrant Shri Address (including ward/tol) As you need to be arrested immediately in connection with the investigation of the offense of , this arrest warrant is issued. Of the Police Personnel: Name, Surname:- Rank:- Date:- Schedule-11 (Relating to Sub-section (2) of Section 13) Format of Detention Warrant for Holding in Custody Shri Address As it is necessary to keep you in police custody for investigation in connection with the offense of pursuant to complaint/report, this detention warrant is issued for keeping you in police custody from today's date.

Investigation Officer:-

Signature:-

Name:-

Rank:-

Office:-

Date:-

Schedule-12

(Relating to Sub-section (4) of Section 16)

Format of Statement Made by a Person Who Saw, Knows or Has Knowledge of the Incident

Before Investigation Officer at Shri Police Office (place so and so), statement given by (so and so) , resident of (so and so) place, occupation (so and so), son/daughter of (so and so) years of

1. Brief description of the complaint application or information:-
2. Questions related to the incident
3. Details stated and written by the person making the statement:-
4. Witnesses:

Signature of person making the statement:-

Thus, on the year month day , auspiciousness. Schedule-13

(Relating to Sub-section (2) of Section 18)

Notice of Search

Shri

In the case regarding the offense of , where the plaintiff is the Government of Nepal and the defendant is , based on the complaint of , since items or objects related to the offense may be kept in the house or property used by the said accused or in a place where the accused may have placed them while committing the offense, I am providing you this notice to search the said house/land. I request you to provide assistance in that task. Investigation Officer

Date:-

Schedule-14

(Relating to Sub-section (3) of Section 18)

Format of Seizure/Search Memo

Seizure/Search Memo of items/objects/place/person's body related to the crime of prepared at Ward No. of

Rural Municipality/Municipality (place) from Shri Police Office

1. Brief description of the complaint application or information of the crime:
2. If the searching officer or personnel must conduct a personal search first, details of such search:
3. Description including the four boundaries of the item/object/place/person where the seizure/search was conducted:
4. Description of goods or evidence related to the crime that were seized:
5. Name, surname, residence, age, signature of witnesses who sign as seen:
(ka)
(kha)
(ga)
6. Name, surname, residence, age and signature of those present:
(ka) resident of Ward No. , Rural Municipality/Municipality, District, who signs stating that when the investigation officer searched my house, goods/objects, body, my personal search was conducted with dignity and no items of my house or belongings have been misappropriated.
(kha) Name, surname, residence of complainant age signature:
(ga) Name, surname, residence of accused age signature:
Investigation officer assigned to conduct the task of seizure, search etc.:
Other personnel:
7. Date:
8. Time:

Schedule-15

(Relating to Sub-section (2) of Section 20)

Format of Crime Scene/Dead Body Examination Memo

Crime scene/dead body examination memo prepared at (place so and so) from Shri Police Office

1. Name, surname, description of the deceased:-
Residence:-
Age:-
Gender:-
2. Brief description of the application or information:-
- 3.

Description including the four boundaries of the crime scene:- 4. Description of the dead body:- Physical condition of the body:- (state details) Description of the body:- Clothing (including other physical materials on the body) Hands clenched Height Straight Hair color Fists Condition of hair Condition of nails Condition of face Condition of legs Eyes: open. closed Other conditions Bruises/Contusions (Place, shape and size) Name Ears Scratches/Abrasions (Place and shape and name) Mouth Teeth and tongue Cut wounds Condition of neck (Place, size) Marks on neck Other places Chest (Place, shape and size) Condition of other parts of the abdomen Anus Penis/Vagina Identifying marks (if any) Any other deformity or abnormal signs (mention them as well) 5. Sketch of the crime scene and dead body. (if possible):- 6. Name, surname, age, residence and signature of witnesses who sign/affix seal as seen:- 7. Name, surname, age, residence and signature of those present:- Name, surname, age, residence and signature of the person giving the application or information:- Name, surname, age, residence and signature of the accused(s):- Task

performed by:- Investigation Officer:- Other police personnel:- Date:- Schedule-16 (Relating to Sub-section (5) of Section 20) Format of Post-Mortem Report AUTOPSY REPORT 1. Case registration number: 2. Police Office sending for autopsy (letter date and reference number): 3. Name of the deceased: 4. Address: 5. Gender: 6. Age, Date of Birth: 7. Dead body identified by: 8. Name of the accompanying Police Personnel: 9. Date and time of death: 10. Date and hour of receipt of inquest papers and dead body: 11. Date and hour of starting autopsy: 12. Date and hour of concluding autopsy: 13. Name of the Experts conducting autopsy: (1) (2) (3) (4) 14.

Name of the Hospital: RELEVANT DETAILS (Mention brief history of the case regarding circumstances of death and other sources of information): EXTERNAL EXAMINATION (General observation of the dead body): (1) Height: (2) Weight: (3) Physique: (4) Hairs: (5) Clothes and conditions: (6) Special identifying features (Huliya): (7) Post-mortem changes present: (a) Rigor mortis: (b) Livor mortis: (c) Algor mortis/Cooling: (d) Different signs of decomposition: (8) Natural orifices: Eyes: Mouth: Vagina/penis: Nose: Ears: Anus: Urethra: (9) Injuries: Name, size and site (Ante mortem /post-mortem /old /fresh) INTERNAL EXAMINATION Head and Neck: 1) Scalp, skull: 2) Brain and vessels: 3) Orbital, nasal and aural cavities: 4) Mouth, tongue: 5) Neck (larynx, thyroid and other neck structures) : 6) Other relevant details: Chest (Thorax) 1) Ribs and chest wall: 2) Diaphragm: 3) Oesophagus: 4) Trachea and bronchi: 5) Pleural cavities: 6) Lungs: 7) Heart and pericardial sac (any content in pericardial sac, condition of three coronary arteries, valves and chambers and myocardium must be observed):- Abdomen 1) Peritoneal and Pelvic cavity : 2) Stomach and content : 3) Small intestine: 4) Large intestine: 5) Liver, gall bladder, pancreas : 6) Spleen: 7) Kidney, renal pelvis : 8) Genital organs: 9) Urinary bladder and urethra: Spinal Column: Specimen Collected For Analysis (Mention preservative also) Toxicology 1) Stomach with contents: 2) Part of liver: 3) Kidney: 4) Blood: 5) Others; if any: Histopathology : Others (Specify): Special Examination (Procedures like neck dissection, pelvic dissection, flotation test of lungs etc. must be done in relevant cases and findings should be documented): Items Handed Over (when and who received?) 1) Autopsy report:- 2) Viscera and other Samples :- 3) Clothes and other articles:- Opinion or Conclusion 1. Opinion on cause of death: ????????? ???? (????????? ????): 2. Opinion on time since death: 3. Opinion on probable type of objects or weapon causing injuries: 4. Opinion on live birth or still birth: 5. Other Opinion; if any: Signature of Medical Officer / Expert 1. 2. 3. Signature: Signature: Signature: Date: Date: Date: Name: Name: Name: Special Qualification, Training and Experience: Special Qualification, Training and Experience: Special Qualification, Training and Experience: N.M.C. Reg. No.: N.M.C. Reg. No.: N.M.C. Reg. No.: Seal of the Hospital: Date : Note: Autopsy should, as far as possible, be conducted by a forensic expert, and if such an expert is not available, by a trained medical doctor.

The report must be prepared by the expert or doctor who conducted the autopsy. As far as possible, the report should be prepared by computer typing; if not, it should be written legibly. The original copy of the examination report must be attached. If the specified space is insufficient to mention details, details should be mentioned on a separate sheet as well. Schedule-17 (Relating to Sub-section (1) of Section 22) Format of Injury Examination Form INJURY EXAMINATION REPORT (IT IS USED IN CASE OF EXAMINATION OF DETAINEE ALSO) 1. Case Registration No.: 2. Name of the Office referred for injury examination (with letter ref. No. and Date) : 3. Name, Age, Date of birth and Sex of the injured person: 4. Address: 5. Name of the accompanying Police Personnel: 6. Name of the Hospital/Health centre: 7. Date, time and place of examination: 8. Identification mark of the examinee : 9. Consent for examination taken from : Injured person Family member or others 10. Brief history about the incident (how and when the injuries were produced?): 11. Medical history of the examinee : 12. General Physique and vitals : Height: Weight: Pulse: B.P.: B.P: Temperature: Respiratory Rate: Temperature: Respiratory Rate: Degree of Consciousness: 13. Injuries (Name, Size, Site, Color, Surrounding area, Signs of treatment, Bleeding Marks, Sign of Healings, any

Imprints and content etc.) : A. Type of injury a. Simple: b. Angabhangha (Grievous) : c. Severe: d. Other remarks: B. Type of weapon/object used: (i) Blunt force (ii) Sharpe force (iii) Pointed objects (iv) Projectile (v) Heat (vi) Chemical (vii) Others (Specify) C. Condition of the patient at the time of examination : D. Severity (Explain the severity in terms of existing condition and possible complication) : E. Investigation and reports (for example X-ray, USG, Blood, Urine etc) : F. Treatment provided (briefly) : G. Referral (Where and Why?): H. Follow up (if necessary) : I. Re- Examination (Whether case needs information about grade of disability) : Opinion: (Condition of examinee, severity of the injury, age of the injury and possible causative objects should be considered to frame opinion) Name of the Examiner: Signature: Qualification:- MC/NHPC Reg. No. : Office/Hospital/Health Centre: Date: Seal of the Hospital/Health Centre: Note: Injury examination should, as far as possible, be conducted by a forensic expert, and if such an expert is not available, by a trained medical practitioner.

The report must be prepared by the expert or medical practitioner who conducted the injury examination. As far as possible, the report should be prepared by computer typing; if not, it should be written legibly. The original copy of the examination report must be attached. If the specified space is insufficient to mention details, details should be mentioned on a separate sheet as well. Schedule-18 (Relating to Sub-section (3) of Section 24) Format of Identification of a Person Identification memo conducted by Police Officer I, son of , resident of Ward No. , Rural Municipality/Municipality, District, was present at the place where the offense of occurred on date in Ward No. , Rural Municipality/Municipality, District. Having been requested by the Police Office to identify the person who committed the offense, which I saw, I am present at this office today. Since I saw the following person(s) when the incident occurred and recognize their appearance and complexion, I identify that he/she is the same person / Since I did not see him/her or his/her appearance/complexion is different, I state that he/she is not that person. Name, surname, residence of the person making identification: Place where identification was made: Name, surname, residence, rank of the officer conducting identification: Date of identification: Schedule-19 (Relating to Sub-section (1) of Section 25) Police Diary 1. Name of Investigation Officer: 2. Date assigned for investigation: 3. Name of Case: 4. Name of Plaintiff/Defendant: 5. Details related to investigation: (ka) Date and time of receiving information of the offense and brief description thereof: (kha) Details of visits made by him/her in the course of investigation: Date Place Tasks performed by him/her Evidence and proofs obtained Details if any person was arrested Name, address of persons questioned by him/her and statements made by them regarding the offense Signature Remarks Schedule-20 (Relating to Sub-section (1) of Section 31) Investigation Report Case No. Diary Date up to 1. Date and time of receiving information of the offense or filing of complaint 2. Name and rank of Investigation Officer 3. Name and address of person providing information 4. Brief description of complaint application or information 5. Date, time and place of the offense 6. Date and time of identification of the victim of the offense 7. Date, time and place of arrest of the offender 8. Name, surname, age, residence (including toll/ward) of the offender (if more than one offender, list all names in order) 9.

Name and residence of the father/mother of the offender 10. Brief description of the statement made by the accused before the authorized officer 11. Place where goods related to the offense were found 12. Name, surname, age and address of the victim of the offense 13. Clear description and depiction of the crime scene 14. Instrument or weapon used in committing the offense 15. Cause of the incident and intention of the offender 16. Proposed opinion of the Investigation Officer and demand for punishment Added by the Act to Amend Some Acts Relating to Money Laundering Prevention and Business Environment Promotion, 2080.16ka. If the accused is also found to have committed an offense related to money laundering, the proposed opinion of the Investigation Officer and demand for punishment 17. If compensation is to be recovered, details of who should be compensated and how much 18. Name, surname, residence of

witnesses having knowledge of the offense and brief description of their statements made before the Investigation Officer 19. Physical evidence related to the offense 20. If any other matter needs to be mentioned, details thereof 21. Serial description of the documents submitted Schedule-21 (Relating to Sub-section (1) of Section 32) Format of Charge Sheet To be filled by Court: Registration No: Registration Date: Filed Under Section 20 of Chapter-3 of the Muluki Criminal Procedure (Code) Act, 2074, in Shri Court. Charge Sheet Number of the Year Government of Nepal Plaintiff By the complaint of Vs. (1) (2) Defendant Case Facts of the Case: (1) (2) (3) Charge levelled against the accused: Description of the legal provision related to the charge: Punishment to be imposed on the accused: If the accused has admitted the offense, details thereof and the proposed sentence reduction: Evidence: Proof, evidence and items related to the offense: Witnesses: From:- (1) (2) (3) (4) If the person harmed by the offense is to be compensated, the demand for compensation. Seized goods or other items of evidential value related to the offense: (1) (2) (3) Documents submitted: (1) (2) (3) It is respectfully requested to the court to initiate proceedings from this charge sheet.

Office Seal: Of the Government Attorney: Signature: Name: Rank: Office: Date: Note: (1) While preparing the charge sheet, matters required to be disclosed under Section 32 of Chapter 3 of this Act must also be stated. (2) The names, surnames, and residences of all offenders must be written in the 'Vs.' section with matching serial numbers. (3) Available evidence, documents must be listed in the format above. Schedule-22 (Relating to Sub-section (2) of Section 53) Format of Complaint To be filled by Court Registration No. Registration Date Filed Under Section of Chapter of the Muluki Criminal Procedure (Code) Act, 2074, in Complaint Petition Criminal File No. of the Year , resident of , aged years, Complainant. Vs. Resident of , aged years, Offender. Case The details of the offense committed by the aforementioned offender are written below. I respectfully request to proceed with the case against him/her. 1. Detail of the offense 2. Charge levelled against the offender 3. Relevant law 4. Punishment to be imposed on the offender 5. Loss caused by the offense and amount to be recovered from the offender 6. If the accused has admitted the offense, details thereof and sentence reduction for that 7. Other necessary matters Evidence Witnesses (1) (2) (Full name, age and address of witnesses) Written 1. 2. Proof 1. 2. Complainant born, resident of Son/Daughter/Wife years of age Date Schedule-23 (Relating to Sub-section (7) of Section 57) Notice to Appear Pursuant to Arrest Warrant Notice Issued by Shri Court In the case of , Government of Nepal vs. You/You including others, upon complaint/report of Shri , a charge sheet has been filed stating that on you/you including others committed , therefore, an arrest warrant in your name is enclosed herewith. You are notified to appear pursuant to the arrest warrant. Court Seal Of the concerned Officer Signature/Seal Schedule-24 (Relating to Sub-section (1) of Section 58) Format of Arrest Warrant Issued by Court in the Name of the Accused Notice Issued by Shri Court In the case of , Government of Nepal vs. You/You including others, upon complaint/report of Shri , a charge sheet has been filed stating that on you/you including others committed , therefore, this arrest warrant is issued in your name. You are notified to appear pursuant to the arrest warrant.

Court Seal Of the concerned Officer Signature/Seal Schedule-25 (Relating to Sub-section (1) of Section 58) Format of Arrest Warrant Issued by Court in the Name of Witnesses and Other Persons Arrest Warrant Issued by Shri Court in the Name of the Offender (Name of Officer or Office) Upon the charge of the offense Against (Name and address of person to be arrested) Since proceedings in this court are ongoing against him/her, you are ordered to arrest him/her and produce him/her before this court within seven days, excluding travel time. If unable to produce him/her within that period, on the eighth day, serve this arrest warrant and the notice sent herewith, inform this court of the same, and search for the person to be arrested, and arrest him/her wherever found and produce him/her before this court. Of the concerned Officer: Date Signature/Seal Court Seal Schedule-26 (Relating to Sub-section (7) of Section 58) Thirty-five Day Arrest Warrant Issued by

Court In the case of , Government of Nepal vs. You/You including others, upon complaint of Shri , an arrest warrant was issued to arrest you, and since you have not been arrested pursuant to that warrant, this thirty-five day arrest warrant is also attached. If you yourself appear or are arrested pursuant to the arrest warrant and appear before this court within thirty-five days, excluding travel time, your statements will be heard and action will be taken according to law. If you do not appear and remain absconding after the expiry of the period, action will be taken according to law. You will not be entitled to file a complaint later. Date Of the concerned Officer Court Seal Signature/Seal Schedule-27 (Relating to Sub-section (2) of Section 59) Format of Summons Issued in the Name of the Accused Summons in the name of , resident of , issued by Since a charge sheet has been filed in this court against you on the charge of the offense of , and hearing on that matter will be held on the day of year month date, you are required to appear before this court. If you fail to appear on that day, a warrant will be issued for your arrest and action will be taken according to law. The complaint against you is attached herewith. Of the concerned Officer Signature/Seal: 1. (Copy of attached document) 2. 3. 4.

Court Seal Date: Schedule-28 (Relating to Sub-section (2) of Section 59) Format of Summons to be Issued in Private Criminal Cases Summons in the name of , resident of , issued by A complaint has been filed against you for the offense of , therefore, this summons is issued. You are to appear before this court within thirty days from the date of issuance of this summons. If you fail to appear within that period, you are informed that proceedings will take place according to law. Of the concerned Officer Signature/Seal: 1. (Documents of which copies are sent) 2. 3. 4. Court Seal Date: Schedule-29 (Relating to Section 60) Format of Summons Issued in the Name of a Witness Summons in the name of , resident of , issued by In the case of plaintiff vs. defendant, as some matters need to be clarified with you, you are to appear before this court at o'clock in the morning on the day of year month date. If you fail to appear, action will be taken according to law. Of the concerned Officer Signature/Seal: Court Seal Date: Schedule-30 (Relating to Sub-section (1) of Section 74) Format of Bond to be Executed by the Person Furnishing Bail In the case of year no. of plaintiff, Government of Nepal, vs. defendant , upon the complaint of and by the order dated of the court, bail of has been demanded. Therefore, I have submitted an application for permission to deposit cash of Rs. or property as described below as such bail. I shall always appear at the time fixed by the court, and if I fail to do so, I consent to the forfeiture of the said bail up to the amount I am liable to pay or bear. Name, surname, residence of person furnishing bail, Name, surname, residence of father/grandfather. Description of property:- Schedule-31 (Relating to Sub-section (3) of Section 74) Format of Bond to be Executed by the Person Providing Surety for Property In the case of year no. of plaintiff, Government of Nepal, vs. defendant , upon the complaint of and by the order dated of the court, surety of is required to be given. Therefore, I have agreed to provide surety of cash Rs. or property as described below as such surety, and I have come to provide such surety.

I shall always ensure the appearance [of the accused] at the time fixed by the court, and if [the accused] fails to appear, I consent to the recovery of the punishment to be imposed on [the accused] or any amount [the accused] is liable to pay from such surety or any other property of mine. Name, surname, residence of person providing surety, Name, surname, residence of father/grandfather. Description of property:- Schedule-32 (Relating to Sub-section (4) of Section 74) Format of Bond to be Executed by a Person Other Than the Accused/Defendant Who Provides Surety In the case of year no. of plaintiff, Government of Nepal, vs. defendant , upon the complaint of and by the order dated of the court, surety of has been demanded from him/her, and for him/her, I have agreed to provide surety of cash Rs. or property as described below as such surety, and I have come to provide such surety. I shall produce the said accused/defendant at the time fixed by the court, and if I fail to produce him/her, I consent to the recovery of the punishment to be imposed on

him/her or any amount he/she is liable to pay from such surety or any other property. Name, surname, residence of person providing surety, Name, surname, residence of father/grandfather. Description of property:- Signature Date Schedule-33 (Relating to Section 80) Format of Detention Warrant Detention Warrant Shri Address In connection with the offense of , case of plaintiff, Government of Nepal, vs. you including others, upon complaint of , as it is necessary to keep you in police custody and proceed with the case, this detention warrant is issued for keeping you in police custody from today's date. Of the concerned Officer:- Signature:- Name:- Rank:- Office:- Date:- Schedule-34 (Relating to Sub-section (1) of Section 82) Format of Date Book Date Book Prepared by Year Month, Date, Day S.No.

Case Name of Complainant, Appellant or Petitioner Name of Accused or Respondent Purpose for which date is fixed Remarks Signature/Seal Schedule-35 (Relating to Sub-section (2) of Section 82) Format of Date Receipt Date Receipt Prepared at Court/Office Plaintiff Defendant Case On date Since the case is to be listed in the cause list on date , for the purpose of , I, the undersigned , state that I will appear at this Court/Office at o'clock on date Plaintiff Defendant Schedule-36 (Relating to Sub-section (1) of Section 83) Format of Date Slip Date Slip in the name of , issued by Case Year Number Vs. , a date has been fixed for , so you are to appear at at o'clock on that day. Signature/Seal of the official fixing the date For , a date has been fixed for , so you are to appear at at o'clock on that day. Signature/Seal of the official fixing the date Schedule-37 (Relating to Sub-section (5) of Section 89) Format of Power of Attorney In the case of with resident of , I have appointed resident of as my attorney to do the work of on my behalf. There is no disqualification for him/her to be an attorney. I have no outstanding dues to pay as fines, penalties, court fees, or charges according to law. The above written content is true; if found false, I consent to the revocation of this power of attorney. Date D.B. Thumbprint (Signature) (Full Name)